



Western Australia

Betting Control Regulations 1978

Compare between:

[14 May 2016, 07-j0-00] and [28 Oct 2016, 07-k0-01]

Betting Control Regulations 1978

Part 1 — Preliminary

[Heading inserted in Gazette 21 Jul 2006 p. 2671.]

1. Citation

These regulations may be cited as the *Betting Control Regulations 1978* ¹.

2. Transitional provision

Notwithstanding that by the operation of the *Acts Amendment (Racing and Betting Legislation) Act 1995* and the *Betting Control Amendment Regulations 1996* ¹ certain responsibilities of the person holding the office of Commissioner of State Taxation ² were transferred to the Board, where under these regulations any form or activity was approved by the Commissioner of State Taxation ² that form or activity shall be taken to have been approved by the Commission in the absence of any specific decision by the Commission to the contrary.

[Regulation 2 inserted in Gazette 25 Jun 1996 p. 2975; amended in Gazette 22 Oct 1996 p. 5619; 30 Jan 2004 p. 412.]

3. Terms used

- (1) In these regulations unless the context requires otherwise —
bet back means a bet made by, or on behalf of, a bookmaker —

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- (a) on a runner or, in the context of a sporting event, on a competitor or contingency; and
- (b) for the purpose of reducing the bookmaker's liability for bets already accepted by the bookmaker against that runner, competitor or contingency;

cash means bank notes or coins;

concession bet means a bet to win at special odds, the stake being refunded if the runner concerned is placed second or third, subject to the number of starters;

country means any part of the State outside the metropolitan area;

each way bet means a bet comprising 2 equal amounts, one amount being for a win and one for a place and both being taken or laid on the same runner or other competitor or contingency at the same time, at stated odds for a win;

Flexi Bet means a method of betting an amount on one or more combinations of outcomes, where the amount of the investment on each combination covered by the bet can be a percentage, or fraction, of the unit of investment;

grandstand enclosure means that portion of a racecourse which is set aside as such by the committee or other authority controlling the racecourse, and commonly known as the "grandstand enclosure";

internet betting means a method of making and accepting bets by means of an on-line telecommunications system (commonly known as "the Internet") using a computer system that is subject to the procedures set out in regulation 76;

leger means that portion of a racecourse which is set aside as such by the committee or other authority controlling the racecourse, and commonly known as "the leger";

rules of racing means the rules of racing made under, or continued for the purposes of, the RWWA Act;

rules of wagering means the rules of wagering made under, or continued for the purposes of, the RWWA Act;

runner means —

- (a) in the context of a horse race, a horse running in the race; or
- (b) in the context of a greyhound race, a greyhound running in the race; or
- (c) in the context of a designated sporting event, a competitor competing in the event;

sporting event does not include a designated sporting event.

- (2) Expressions which are defined in, or are to be read as included in a reference by reason of, section 4 or which are expressions defined in the Rules of Betting set out in the Appendix have the same respective meanings for the purposes of these regulations, those Rules, and any approval under section 4B, unless the context otherwise requires.
- (3) Notwithstanding that these regulations and the Rules of Betting set out in the Appendix would not otherwise apply, where —
 - (a) in the context of a designated sporting event, a permit under section 4A; or
 - (b) in the context of a sporting event, an approval under section 4B,

provides that bets of a kind other than those defined in this regulation may be made, these regulations and those Rules of Betting shall be taken to apply to those bets.

- (4) For the purpose of these regulations, a bet is an on-course totalisator bet if —
 - (a) the person making the bet is physically present at the racecourse; and
 - (b) the bet is placed through a totalisator located on that racecourse (whether personally, or digitally using a mobile device and a telecommunications network); and
 - (c) payment for the bet is made at the time the bet is placed, either in cash or from an established RWWA wagering account; and

- (d) the bet is placed in person and not by a traditional telephone voice transmission to the RWWA call centre.

[Regulation 3 amended in Gazette 24 Jun 1988 p. 2003; 14 Feb 1992 p. 857; 10 Jul 1992 p. 3286-7; 21 Jul 1998 p. 3851, 3854, 3855 and 3856; 26 Nov 1999 p. 5908; 30 Jan 2004 p. 403; 21 Jul 2006 p. 2672; 18 Sep 2007 p. 4717; 25 Sep 2009 p. 3752; 14 Jun 2013 p. 2241; 13 May 2016 p. 1427.]

Part 2 — Licences, fees and commissions

[Heading inserted in Gazette 21 Jul 2006 p. 2672.]

[3A-8. Deleted in Gazette 30 Jan 2004 p. 403.]

9. Application for licence

- (1) A person who desires to make application for a licence shall —
 - (a) complete and sign such forms as are approved by the Commission;
 - (b) lodge with the Commission the forms together with the fee, if any, prescribed in respect of the application by regulation 17.

- (2) A person may —
 - (a) at any time prior to the determination of their application for the grant of a licence, withdraw the application by notice in writing served on the Commission;
 - (b) at any time after a licence is granted to that person, surrender that licence to the Commission,

and upon receipt by the Commission of a notice of withdrawal or the surrender of a licence pursuant to this subregulation, that application or licence, as the case may be, ceases to have effect, but a withdrawal or surrender so made does not affect the operation of regulation 18 or the validity of any bond or security lodged under that regulation.

[Regulation 9 amended in Gazette 14 Jul 1989 p. 2133; 10 Jul 1992 p. 3286-7; 20 Sep 2002 p. 4698; 30 Jan 2004 p. 404 and 412.]

9A. Application to conduct a designated sporting event

- (1) An application for the purposes of section 4A(2) shall be in a form approved by the Commission and shall be submitted in a completed form.

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- (2) The information required to be given in the approved form is the information prescribed for the purposes of section 4A(3).
- (3) The Commission may require the Commissioner of Police to report on any application made for the purposes of section 4A(2).

*[Regulation 9A inserted in Gazette 21 Jul 1998 p. 3852;
amended in Gazette 20 Sep 2002 p. 4698; 30 Jan 2004 p. 412.]*

10. Application for approval

A person who desires to make application for approval under section 11B(4) or 11C(2) of the Act shall —

- (a) complete and sign such forms as are approved by the Commission; and
- (b) lodge with the Commission the forms together with the charge, if any, prescribed in respect of the application by regulation 17(2) or (3).

*[Regulation 10 inserted in Gazette 20 Sep 2002 p. 4698;
amended in Gazette 30 Jan 2004 p. 404 and 412.]*

11. When licence may be renewed

An application for the renewal of a licence as a bookmaker's manager or employee may be made only during the currency of the licence to which the renewal is to relate, and any application made in relation to a licence which has expired shall be treated as an application for a licence in the first instance and not by way of renewal.

*[Regulation 11 amended in Gazette 10 Jul 1992 p. 3286-7;
20 Sep 2002 p. 4698.]*

12. Grant of licence

- (1) Where the Commission determines that a licence shall be granted the Commission shall notify the applicant and, on the applicant paying the appropriate licence fee, if any, prescribed to the Commission and lodging with the Commission the

security or bond required by the Commission in accordance with regulation 18, shall furnish to the applicant a receipt for that fee and for the security and issue the relevant licence.

[(2) deleted]

[Regulation 12 amended in Gazette 10 Jul 1992 p. 3286-8; 30 Jan 2004 p. 404 and 412.]

[13. Deleted in Gazette 20 Sep 2002 p. 4698.]

14. Effect of licence

- (1) A licence under the Act shall be issued in a form approved by the Commission.
- (2) A bookmaker's licence, a bookmaker's manager licence and bookmaker's employee licence are subject to the terms and conditions specified therein or endorsed thereon.
- (3) The Commission may endorse a licence or alter the endorsement on a licence at any time.
- (4) An alteration of the endorsement may be effected by actual alteration or interlineation or by the replacement of the licence.
- (5) A licence authorises the holder of it to do only such acts, and to do them only at such times and places and in such circumstances, as are specifically stated in these regulations, as are specified in an approval under section 4B, a permit under section 12 or the licence itself or by endorsement on the licence, and authorises the holder only to do any of the acts while doing it in accordance with these regulations, such approval or such permit.
- (6) A bookmaker's licence authorises the licensee to carry on the business of a bookmaker only on that portion of a racecourse named therein, and not elsewhere.

- (7) A bookmaker's licence which is endorsed to that effect authorises the licensee to carry on the business of a bookmaker, in relation to sporting events or contingencies approved under section 4B, by means of —
- (a) on-course telephone betting conducted in accordance with regulation 71; or
 - (b) on-course internet betting, conducted in accordance with regulations 74 and 76,

or both, as the case may be.

- (8) A bookmaker's licence which is endorsed to that effect authorises the licensee to carry on the business of a bookmaker, in relation to racing, by means of —
- (a) on-course telephone betting conducted in accordance with regulation 72; or
 - (b) on-course internet betting, conducted in accordance with regulations 75 and 76,

or both, as the case may be.

[Regulation 14 amended in Gazette 24 Jun 1988 p. 2004; 10 Jul 1992 p. 3286 and 3288; 31 Aug 1993 p. 4677 (correction in Gazette 10 Sep 1993 p. 4975); 24 Dec 1993 p. 6839; 21 Jul 1998 p. 3852 and 3855; 26 Nov 1999 p. 5908-9; 20 Sep 2002 p. 4699; 30 Jan 2004 p. 412.]

[15. Deleted in Gazette 10 Jul 1992 p. 3288.]

16. Duplicate licences

- (1) On stating the circumstances under which that licence was lost or destroyed, and on payment of the prescribed fee, the holder of a licence may apply to the Commission for the issue of a duplicate licence of the same effect, and subject to the same terms and conditions, as the original licence the Commission may issue such a duplicate licence.

- (2) Where after the issue of a duplicate licence the original licence is found, the duplicate licence shall forthwith be forwarded to the Commission for cancellation.

[Regulation 16 amended in Gazette 10 Jul 1992 p. 3286 and 3288; 30 Jan 2004 p. 412.]

17. Fees and charges

- (1) The Commission shall charge the following fees —
- (aa) On the grant of a permit under section 4A for a designated sporting event \$48;
 - (ab) On the endorsement of a permit (*granted under section 4B for betting on a sporting event, or a contingency, or granted for racing*) authorising the permit holder to carry on business by means of on-course telephone betting \$69;
 - (ac) On the endorsement of a permit (*granted under section 4B for betting on a sporting event, or a contingency, or granted for racing*) authorising the permit holder to carry on business by means of on-course internet betting..... \$345;
 - (ad) On an application for approval (*under regulation 37(5)*) to use a computer betting ledger system..... \$74;
 - (a) On an application for a bookmaker's licence..... \$695;
 - (b) On an application for, or for the renewal of, a bookmaker's employee licence..... \$30;
 - (ba) On an application for a bookmaker's manager licence..... \$170;
 - (bb) On an application for the renewal of a bookmaker's manager licence..... \$91;

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- (c) For an appeal to the Commission in connection with a betting dispute..... \$165;
 - (d) On provision of a copy of a transcript of an appeal hearing, for each page \$4;
 - (e) On applying for the issue of a duplicate licence..... \$30;
 - (f) On an application by an offshore betting operator for an exemption under section 27A of the Act \$665.
- (2) A person who applies under section 11B(4) of the Act for approval to become a member of a partnership that holds a bookmaker's licence shall pay to the Commission when making the application a charge of \$108.
- (3) A person who applies under section 11C(2) of the Act for approval to occupy a position of authority in a body corporate that holds a bookmaker's licence shall pay to the Commission when making the application a charge of \$108.

[Regulation 17 amended in Gazette 14 Jul 1989 p. 2133; 10 Jul 1992 p. 3288; 21 Jul 1998 p. 3852; 2 Oct 2001 p. 5454; 20 Sep 2002 p. 4699; 26 Sep 2003 p. 4226; 30 Jan 2004 p. 404 and 412; 9 Jul 2004 p. 2781; 14 Oct 2005 p. 4559; 14 Nov 2006 p. 4729-30; 9 Oct 2007 p. 5348-9; 28 Oct 2008 p. 4732-3; 30 Oct 2009 p. 4312-13; 19 Nov 2010 p. 5739; 4 Nov 2011 p. 4635; 16 Nov 2012 p. 5646-7; 8 Nov 2013 p. 4972; 14 Nov 2014 p. 4279-80; 6 Nov 2015 p. 4581-2.]

17A. Bookmakers' annual licence fee

- (1) The bookmakers' annual licence fee payable under section 13(1) shall be —
- (a) paid, in respect of each assessment year commencing on 1 August and ending on 31 July, at the following rates for that year —
 - (i) on total turnover not exceeding \$250 000 \$389;

- (ii) on total turnover greater than
\$250 000 but not exceeding
\$1 000 000 \$793;
 - (iii) on total turnover greater than
\$1 000 000 \$1 190;
- and
- (b) payable, on the basis of self assessment by the holder of
the licence, on or before 31 August following the end of
the assessment year —
 - (i) to the Commission; and
 - (ii) in accordance with a properly completed annual
return, in a form approved by the Commission,
accompanying the payment.
- (2) The bookmakers' annual licence fee payable under
section 13(4) in respect of a part year shall be —
 - (a) assessed by the Commission on the basis of total
turnover during the year ending the preceding 31 July
assessed proportionately according to the number of
months, or parts of a month, during which the licence
operated in the year of assessment; and
 - (b) payable to the Commission at such time and in such
manner as the Commission may, in writing, request.
- (3) The holder of the licence shall supply or make available to the
Commission such other information as the Commission may
consider to be relevant to the assessment of any bookmakers'
annual licence fee at such time and in such manner as the
Commission may, in writing, request.

*[Regulation 17A inserted in Gazette 25 Jun 1996 p. 2975;
amended in Gazette 10 Jul 1988 p. 3647; 21 Jul 1998 p. 3852;
26 Sep 2003 p. 4226; 30 Jan 2004 p. 412; 9 Jul 2004 p. 2781;
14 Oct 2005 p. 4559; 14 Nov 2006 p. 4730; 9 Oct 2007 p. 5349;
28 Oct 2008 p. 4733; 30 Oct 2009 p. 4313; 19 Nov 2010
p. 5740; 4 Nov 2011 p. 4636; 16 Nov 2012 p. 5647; 8 Nov 2013
p. 4973; 14 Nov 2014 p. 4280; 6 Nov 2015 p. 4582.]*

17B. On-course totalisator annual licence fee

- (1) The on-course totalisator annual licence fee payable under section 17A(1) shall be —
 - (a) paid, in respect of each assessment year commencing on 1 August and ending on 31 July, at the following rates —
 - (i) on total turnover not exceeding \$10 000 — no fee;
 - (ii) on total turnover greater than \$10 000 but not exceeding \$160 000 — \$48;
 - (iii) on total turnover greater than \$160 000 — 0.03% of the turnover,for that year; and
 - (b) payable, on the basis of self assessment by the authority authorised to possess and operate that totalisator, on or before 15 August following the end of the assessment year —
 - (i) to the Commission; and
 - (ii) in accordance with a properly completed annual return, in a form approved by the Commission, accompanying that payment.
- (2) The on-course totalisator annual licence fee payable under section 17A(4) in respect of a part year shall be —
 - (a) assessed by the Commission on the basis of total turnover during the year ending the preceding 31 July assessed proportionately according to the number of months, or parts of a month, during which the on-course totalisator operated in the year of assessment; and
 - (b) payable to the Commission at such time and in such manner as the Commission may, in writing, request.
- (3) The authority authorised to possess and operate the totalisator shall supply or make available to the Commission such other information as the Commission may consider to be relevant to

the assessment of any on-course totalisator annual licence fee at such time and in such manner as the Commission may, in writing, request.

[Regulation 17B inserted in Gazette 25 Jun 1996 p. 2976; amended in Gazette 10 Jul 1998 p. 3647; 26 Sep 2003 p. 4226; 30 Jan 2004 p. 412; 28 Apr 2006 p. 1659; 9 Oct 2007 p. 5349-50; 19 Nov 2010 p. 5740; 16 Nov 2012 p. 5647; 8 Nov 2013 p. 4973; 14 Nov 2014 p. 4280; 6 Nov 2015 p. 4582.]

17C. Percentage of bets to belong to RWWA

For the purpose of section 17E(1)(a), the amount prescribed as the commission for a bet is —

- (a) where the totalisator is conducted on the system whereby all winning bets, for a win or a place, are deducted before the commission is deducted —
 - (i) for a losing bet for a win.....20%; and
 - (ii) for a losing bet for a place.....25%;and
 - (b) for all win bets that are not pooled, 14.5% of those win bets; and
 - (ba) for all place bets that are not pooled, 14.25% of those place bets; and
 - (c) for all novelty bets as described in the rules of wagering, other than a favourite numbers bet, 20%; and
 - (d) for bets of any other kind, 25%,
- subject to section 17E(2).

[Regulation 17C inserted in Gazette 25 Jun 1996 p. 2976-7; amended in Gazette 11 Sep 2001 p. 5001; 18 Jan 2002 p. 284; 28 Apr 2006 p. 1659; 21 Jul 2006 p. 2672.]

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17D. Percentage of bets to belong to racing club

For the purpose of section 17F(a), the amount prescribed as the commission for a bet which may be deducted by a racing club shall be the same percentage as is authorised by regulation 17C, in relation to a bet of that kind, to be deductible by RWWA.

*[Regulation 17D inserted in Gazette 25 Jun 1996 p. 2977;
amended in Gazette 30 Jan 2004 p. 404.]*

Part 3 — Provisions relating to bookmakers

[Heading inserted in Gazette 21 Jul 2006 p. 2672.]

17E. Levy which may be retained

For the purpose of section 15(5)(a), a racing club may retain out of the sum of bookmakers' betting levy received by that club in respect of —

- (a) sports betting to which section 4A applies, no percentage; and
- (b) sports betting to which section 4B applies, 50%; and
- (c) all other betting, 100%.

[Regulation 17E inserted in Gazette 25 Jun 1996 p. 2977; amended in Gazette 21 Jul 1998 p. 3854.]

18. Security to be given

- (1) The amount of the security required to be lodged with the Commission under section 11E(1) on an application for a bookmaker's licence by a natural person or a partnership where all of the members of the partnership are natural persons shall be —

- (a) for a licence endorsed for metropolitan grandstand enclosure operations with The Western Australian Turf Club..... \$100 000;
- (b) for a licence endorsed for metropolitan grandstand enclosure operations with the Western Australian Trotting Association..... \$40 000;
- (c) for a licence endorsed for metropolitan grandstand enclosure operations with the Western Australian Greyhound Racing Association..... \$25 000;

- (d) for a licence endorsed for metropolitan leger or country racecourse operations with The Western Australian Turf Club, the Western Australian Trotting Association, or the Western Australian Greyhound Racing Association..... \$25 000;
- (e) for a licence endorsed to authorise the conduct of sports betting or double event betting, or both..... \$100 000.

- (2) The amount of the security required to be lodged with the Commission under section 11E(1) on an application for a bookmaker's licence by a body corporate or a partnership that has a member that is a body corporate shall be \$250 000.
- (3) The amount of the security required to be lodged with the Commission under section 11E(2) by a director of a body corporate that is an applicant for or holds a bookmaker's licence shall be \$10 000.

[(3a) Omitted under the Reprints Act 1984 s. 7(4)(e).]

[Regulation 18 amended in Gazette 24 Jun 1988 p. 2004; 10 Jul 1992 p. 3288-9; 4 Mar 1997 p. 1396 (as amended in Gazette 24 Jun 1997 p. 3014); 21 Jul 1998 p. 3854; 20 Sep 2002 p. 4699-700; 17 Dec 2002 p. 5923-4; 30 Jan 2004 p. 412.]

[19-24. Deleted in Gazette 10 Jul 1992 p. 3289.]

25. Register

The Commission shall maintain a register of persons licensed under the Act.

[Regulation 25 amended in Gazette 20 Sep 2002 p. 4700; 30 Jan 2004 p. 404.]

[26. Deleted in Gazette 10 Jul 1992 p. 3289.]

27. Change of address

- (1) A natural person who holds a licence and fails, within 7 days after changing his or her place of residence, to inform, in writing, the Commission of the address of the then current place of residence commits an offence.

Penalty: \$50.

- (2) Each of the partners of a partnership, or a body corporate, that holds a licence who or which fails, within 7 days after the partnership or body corporate changes its place of business, to inform, in writing, the Commission of the address of the then current place of business commits an offence.

Penalty: \$250.

*[Regulation 27 amended in Gazette 24 Jun 1988 p. 2004;
10 Jul 1992 p. 3286 and 3289; 25 Jun 1996 p. 2977;
20 Sep 2002 p. 4700; 30 Jan 2004 p. 412.]*

28. Return of licence

- (1) A natural person who holds a licence and fails to deliver that licence to the Commission on demand being made by the Commission, commits an offence.

Penalty: \$50.

- (1a) Each of the partners of a partnership, or a body corporate, that holds a licence who or which fails to deliver that licence to the Commission on demand being made by the Commission commits an offence.

Penalty: \$50.

- (2) A natural person who holds a licence and fails to deliver that licence to the Commission forthwith on receipt of a written notice of suspension or cancellation from the Commission, commits an offence.

Penalty: \$200.

- (2a) Each of the partners of a partnership, or a body corporate, that holds a licence who or which fails to deliver that licence to the Commission forthwith on receipt of a written notice from the Commission of suspension or cancellation of the licence of the partnership or body corporate commits an offence.

Penalty: \$200.

[Regulation 28 amended in Gazette 24 Jun 1988 p. 2004; 10 Jul 1992 p. 3286 and 3289; 20 Sep 2002 p. 4700-1; 30 Jan 2004 p. 404 and 412.]

29. Production of licence

A licensee who is a natural person, each of the partners of a partnership that is a licensee, or a body corporate that is a licensee, who or which refuses or neglects to produce the original licence on demand by a steward, a member of the Commission or a person authorised by the Commission or a person authorised by a racing club, commits an offence.

Penalty: \$200.

[Regulation 29 amended in Gazette 24 Jun 1988 p. 2004; 10 Jul 1992 p. 3286 and 3289; 20 Sep 2002 p. 4701; 30 Jan 2004 p. 405 and 412.]

30. Advertising

A bookmaker or a manager or an employee of a bookmaker may advertise that person's business of betting by means of, or in —

- (a) any book, newspaper, magazine, pamphlet, business card, sign or other printed matter;
- (b) radio or television transmission, visual display communicated by electronic means or cinematographic exhibition.

[Regulation 30 inserted in Gazette 12 Aug 1983 p. 2918; amended in Gazette 10 Jul 1992 p. 3289; 13 Oct 2000 p. 5726; 20 Sep 2002 p. 4701.]

[31-35. Deleted in Gazette 10 Jul 1992 p. 3289.]

36. Betting tickets

- (1) A bookmaker shall not use or permit to be used in the carrying on of that person's business any betting ticket that —
- (a) is not in a form approved by the Commission; and
 - (b) does not have printed thereon his or her name and the initials of the controlling authority by which that bookmaker is registered.

[(2) deleted]

- (3) A bookmaker who uses a betting ticket which is impressed with a rubber stamp or is marked with the bookmaker's name in a manner which does not comply with subregulation (1) commits an offence.

Penalty: \$500.

- (4) A bookmaker shall not sell or transfer to any other bookmaker a betting ticket unless it is transferred in respect of a bet.
- (5) Betting tickets shall —
- (a) bear consecutive numbers, and be issued in consecutive order; and
 - (b) be provided for the use of a bookmaker —
 - (i) if the record of betting is to be handwritten, by the Commission at reasonable cost; and
 - (ii) if the record of betting is to be made using a computer, by that bookmaker in a form, size and colour approved by the Commission;
- and
- (c) when issued in respect of a bet, be cancelled by —
 - (i) writing across the face; or
 - (ii) otherwise defacing the ticket,in such a manner as to prevent re-use.

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- (6) A bookmaker who —
- (a) uses a betting ticket that does not comply with; or
 - (b) otherwise fails to comply with,
- this regulation commits an offence.
- (7) This regulation applies to a partnership that is a bookmaker as if the partnership were a person, but it applies with the following changes —
- (a) obligations that would be imposed on the partnership are imposed instead on each partner, but may be discharged by any of the partners;
 - (b) any offence against this regulation that would otherwise be an offence by the partnership is to be taken to have been committed by each of the partners.

[Regulation 36 amended in Gazette 12 Aug 1983 p. 2918; 14 Feb 1992 p. 859-60; 10 Jul 1992 p. 3289-90; 25 Jun 1996 p. 2977; 13 Oct 2000 p. 5726; 20 Sep 2002 p. 4701-2; 30 Jan 2004 p. 412.]

37. Written record of betting transactions

- (1) The written record required to be kept in respect of each betting transaction shall show the following information —
- (a) the name of the bookmaker;
 - (b) the name of the racecourse;
 - (c) the date of the meeting;
 - (d) where appropriate, the race number;
 - (e) the number of the betting ticket;
 - (f) the name of the runner, or the nature of the event or contingency, on which the bet is made;
 - (g) the kind of bet made, in sufficient detail to identify the bet;

- (h) the amount of the bet and the odds at which it was made or the method by which the odds will be calculated (if the odds are not known);
 - (j) where the bet is not made for cash, the name of the person with whom the bet is made;
 - (k) where the bet is on a sporting event, such other particulars as are specified in an approval under section 4B approving the conduct of betting;
 - (l) where the bet is conducted on a racecourse, such other particulars as are specified in a permit under section 12 in relation to betting at the racecourse.
- (2A) For the purposes of subregulation (1)(j) —
- (a) if a person (agent) makes a bet for or on behalf of another person (principal), the principal is the person with whom the bet is made; and
 - (b) if a bet is received by way of internet betting, the requirement to name the person with whom the bet was made is not satisfied by stating —
 - (i) that the bet was received via the internet; or
 - (ii) the name the internet betting system used to place that bet.
- (2) The details of the amount of the bet may be shown in either of the following ways —
- (a) the amount bet by the bettor and the odds at which the bet is made shall be recorded, and if win and place bets in respect of one runner backed each way are recorded on the one ticket the separate amounts backed for a win and a place, and the odds at which the bet for a win is made, shall be recorded; or
 - (b) the sum of the amount bet by the bettor and the amount bet by the bookmaker shall be recorded, and if win and place bets in respect of one runner backed each way are recorded on the one ticket, 2 amounts shall be shown,

each being the sum of the amount backed and the amount bet by the bookmaker in relation to each bet.

- (3A) For the purposes of subregulation (2)(a) if the odds are not known at the time the bet is made, the method by which the odds will be calculated must be recorded.
- (3) Where approval is granted under subregulation (5), the record shall be made using the approved computer and in a format which shows the information required by subregulation (1) unless a different format is specifically approved by the Commission.
- (4) Except where approval is granted under subregulation (5) the record shall —
- (a) be made using a book of forms provided by the Commission; and
 - (b) show the information required by subregulation (1),
- unless otherwise specifically approved by the Commission.
- (5) Upon application made in writing by the bookmaker concerned, and the payment of the fee prescribed in regulation 17, the Commission may grant written approval to the use of a computer —
- (a) to facilitate the recording of bets; and
 - (b) for the purposes of the written record required to be kept by that bookmaker under the Act; and
 - (c) to produce betting tickets for issue to bettors.
- (6) In respect of any approval granted under subregulation (5) —
- (a) such conditions as to —
 - (i) the use of; and
 - (ii) the time or circumstances of the use of; and
 - (iii) subject to regulation 36(5)(b)(ii), the form, colour or other specifications of betting tickets to be issued as required by; and

- (iv) the format of the record to be produced by, that computer as the Commission specifies in that approval may be imposed; and
- (b) the Commission, at any time by notice in writing given to the bookmaker, may —
 - (i) cancel or vary a condition imposed; or
 - (ii) withdraw the approval.

[Regulation 37 inserted in Gazette 14 Feb 1992 p. 860-1; amended in Gazette 25 Jun 1996 p. 2977; 21 Jul 1998 p. 3853 and 3855; 2 Oct 2001 p. 5455; 30 Jan 2004 p. 412; 25 Sep 2009 p. 3752; 29 Nov 2013 p. 5467.]

38. Supply of books

Where copies of any form required to be approved or provided by the Commission for the purposes of these regulations is to be supplied in book form by the Commission to the bookmaker on request the book of forms shall be so supplied at reasonable cost to the bookmaker.

[Regulation 38 amended in Gazette 10 Jul 1992 p. 3290; 25 Jun 1996 p. 2977; 30 Jan 2004 p. 412.]

39. Loss of books etc.

Where the whole or the unused portion of the book form of any of the forms required for the purpose of the Act is lost or is destroyed, the bookmaker to whom the book belongs shall forthwith notify the Commission in writing of the fact and of the circumstances under which the loss or destruction occurred, and if the book or portion is subsequently found it shall be immediately forwarded to the Commission.

[Regulation 39 amended in Gazette 14 Feb 1992 p. 861; 25 Jun 1996 p. 2977; 30 Jan 2004 p. 412.]

[40-42. Deleted in Gazette 10 Jul 1992 p. 3290.]

43. Betting material

[(1) deleted]

- (2) Before betting material is delivered to an authorised person it shall be completed by the bookmaker, the manager of the bookmaker or an employee of the bookmaker in the prescribed manner.
- (3) Where the Commission requires a bookmaker or the committee or other authority of a racing club to produce or deliver any betting material in the possession or control of that person or body that bookmaker, committee or other authority shall deliver the material or cause it to be delivered at the office of the Commission within the time specified by the Commission.

*[Regulation 43 amended in Gazette 10 Jul 1992 p. 3290;
20 Sep 2002 p. 4702; 30 Jan 2004 p. 412.]*

[44-47. Deleted in Gazette 10 Jul 1992 p. 3290.]

48. Rules of Betting

Subject to these regulations, all bets shall be in accordance with the Rules of Betting set out in the Appendix and the rules of wagering.

[Regulation 48 amended in Gazette 30 Jan 2004 p. 405.]

48A. Minimum bet obligations

A bookmaker is to comply with any minimum bet obligations imposed as a condition of a permit granted to the bookmaker under section 12 of the Act or imposed under the rules of wagering.

[Regulation 48A inserted in Gazette 30 Jan 2004 p. 405.]

49. Bets on more than one result

For the purposes of these regulations a bet for a win and a place, whether or not an each way bet, or a double or treble or other

similar bet is to be regarded as one bet only except in so far as —

- (a) in the context of a designated sporting event a permit under section 4A provides otherwise; or
- (b) in the context of a sporting event an approval under section 4B provides otherwise.

[Regulation 49 inserted in Gazette 21 Jul 1998 p. 3853.]

50. Permitted bets

A bookmaker shall bet either against a first runner or for a win and a place (where place betting is permitted) except in so far as —

- (a) in the context of a designated sporting event a permit under section 4A provides otherwise; or
- (b) in the context of a sporting event an approval under section 4B provides otherwise; or
- (c) these regulations or the rules of wagering provide otherwise,

and except that when the favourite is at odds on, the bookmaker may bet first and second, or first, second and third.

*[Regulation 50 inserted in Gazette 21 Jul 1998 p. 3853;
amended in Gazette 30 Jan 2004 p. 405.]*

51. Place betting

- (1) A bookmaker shall not accept a bet for a place other than as part of an each way bet except in so far as —
 - (a) in the context of a designated sporting event a permit under section 4A provides otherwise; or
 - (b) in the context of a sporting event an approval under section 4B provides otherwise; or
 - (c) the bookmaker is expressly permitted to do so by the committee or other authority controlling the racecourse on which the bookmaker is operating on that day.

Penalty: \$200.

[(2) deleted]

- (3) Where place betting is permitted a bookmaker who offers odds against a runner, or competitor or contingency in the context of a sporting event, shall, unless the favourite is at “odds on” at the time the bet is laid, accept a win and place bet on that runner, or competitor or contingency in the context of a sporting event, if that bet is demanded by the backer.

Penalty: \$200.

[Regulation 51 amended in Gazette 24 Jun 1988 p. 2005; 14 Sep 1990 p. 4863; 10 Jul 1992 p. 3291; 21 Jul 1998 p. 3854 and 3855; 20 Sep 2002 p. 4702.]

52. Concession betting

A bookmaker shall not make a concession bet unless the bookmaker holds a permit to do so from the committee or other authority controlling the racecourse on which the bookmaker is operating.

Penalty: \$200.

[Regulation 52 amended in Gazette 24 Jun 1988 p. 2005; 10 Jul 1992 p. 3291.]

53. Doubles other than multiple doubles

No bookmaker shall make double event bets, other than multiple doubles, except in respect of such events or subject to such conditions and the chart being in such form as the Commission may from time to time approve.

Penalty: \$200.

[Regulation 53 amended in Gazette 24 Jun 1988 p. 2005; 30 Jan 2004 p. 412.]

54. Trebles

No bookmaker shall make a treble event bet, except in respect of such events or subject to such conditions and the chart being in such form as the Commission may from time to time approve.

Penalty: \$200.

*[Regulation 54 amended in Gazette 24 Jun 1988 p. 2005;
30 Jan 2004 p. 412.]*

55. All-up

No bookmaker shall make more than a treble “all-up” bet.

Penalty: \$200.

[Regulation 55 amended in Gazette 24 Jun 1988 p. 2005.]

[56. Deleted in Gazette 13 Oct 2000 p. 5726.]

57. Stand

No bookmaker shall bet or offer to bet from any position in the betting ring, or in an approved area where betting to which section 4B applies is carried on, other than from the stand or other specified area allotted by the committee or other authority controlling the race meeting.

Penalty: \$200.

*[Regulation 57 amended in Gazette 24 Jun 1988 p. 2005;
10 Jul 1992 p. 3291; 21 Jul 1998 p. 3854.]*

58. Use of stand

- (1) No person other than the bookmaker, the bookmaker’s manager or any licensed employee shall be, or be permitted to be, upon the betting stand of that bookmaker.

Penalty: \$200.

- (2) A bookmaker, the bookmaker's manager or licensed employee shall remain at the betting stand of that bookmaker for at least 15 minutes after the declaration of correct weight for the last race on the programme at any meeting on which the bookmaker is operating.

[Regulation 58 amended in Gazette 24 Jun 1988 p. 2005; 10 Jul 1992 p. 3291; 20 Sep 2002 p. 4702.]

59. Name of bookmaker to be shown

- (1) A bookmaker shall not carry on business as a bookmaker at a race meeting unless there is displayed on the betting stand of that bookmaker a tablet or sign showing —
- (a) the name of the bookmaker; or
 - (b) with the Commission's approval, an acceptable registered business name.

Penalty: \$200.

- (2) A bookmaker that is a body corporate or partnership shall not carry on business as a bookmaker at a race meeting unless there is displayed on the betting stand of that bookmaker a tablet or sign showing the name of the bookmaker's manager.

Penalty: \$200.

- (3) A registered business name cannot be approved by the Commission under subregulation (1)(b) if it misrepresents the nature of the service provided by the bookmaker.

[Regulation 59 inserted in Gazette 11 Nov 2003 p. 4673-4; amended in Gazette 30 Jan 2004 p. 405 and 412.]

60. Betting boards etc. to be approved

No bookmaker carrying on business as a bookmaker at a race meeting shall use or display any betting board, tablet or sign, or display the name of that bookmaker or the names of runners, or in the context of a sporting event the name of every competitor and a description of each contingency on which betting is approved, or the odds the bookmaker is prepared to bet, unless

such betting board, tablet or sign, and the manner in which names and odds are displayed is in accordance with the requirements of, or has the approval of, the committee or other authority controlling the race meeting.

[Regulation 60 amended in Gazette 24 Jun 1988 p. 2005; 10 Jul 1992 p. 3291; 21 Jul 1998 p. 3856.]

61. Betting boards

- (1) A licensed bookmaker who carries on business as a bookmaker at a race meeting shall display a betting board on which is listed the names of the runners in each race in the same order as they appear in the official race book published for that race meeting or in the context of a sporting event the name of every competitor and a description of each contingency on which betting is approved.
- (2) A bookmaker carrying on business as a bookmaker at a race meeting shall exhibit the odds first offered by that bookmaker on each runner engaged in each race at least 20 minutes, or such other period as may be specified as a condition of a permit granted to the bookmaker under section 12 of the Act or specified under the rules of wagering, before the scheduled starting time of the first race and for subsequent races not later than 5 minutes after the pay-out signal for the previous race has been given.
- (3) No bookmaker, manager of a bookmaker or licensed employee shall remove from the bookmaker's betting board the names of any runners running in a race or the odds the bookmaker is prepared to bet on those runners until the race is concluded.

[Regulation 61 amended in Gazette 24 Jun 1988 p. 2005; 10 Jul 1992 p. 3292; 21 Jul 1998 p. 3855 and 3856; 20 Sep 2002 p. 4703; 30 Jan 2004 p. 405.]

62. Omissions from betting board etc.

- (1) A bookmaker or a manager of a bookmaker who —

- (a) omits from a betting board or list maintained and displayed in the course of the bookmaker's business as a bookmaker the name of any runner which has been accepted to run in a race on which the bookmaker is betting; or
- (b) omits from a betting chart or list maintained and displayed for the purpose of multiple doubles betting in respect of any race meeting —
 - (i) the name of any runner accepted to run in a race at that meeting; or
 - (ii) the price offered for each runner whose name appears on the chart or list,

commits an offence.

- (2) No bookmaker shall bet or offer to bet on any runner, or in the context of a sporting event any competitor or contingency, which is not at that time included in the official list.

[Regulation 62 amended in Gazette 10 Jul 1992 p. 3292; 21 Jul 1998 p. 3855; 20 Sep 2002 p. 4703.]

63. Bets with domestic betting operators and totalisators

- (1A) In this regulation —

totalisator includes a totalisator (however described) operated in another State or a Territory.

- (1) No bookmaker shall be compelled to accept a bet from another bookmaker, or from any person on behalf of a bookmaker.

[(2), (3) deleted]

- (4) Where a bet is made by or on behalf of a bookmaker with a domestic betting operator —
 - (a) if the domestic betting operator is another bookmaker, the bookmaker receiving the bet shall record the name of the bookmaker making the bet, or on whose behalf the

bet is made, alongside the record of the bet whether or not the bet is made in cash; and

- (b) if the bet is a bet back, the bookmaker who makes the bet or on whose behalf the bet is made shall record —
 - (i) the details of the bet; and
 - (ii) the bet as a bet back; and
 - (iii) the number of the betting ticket.
- (5) Where a bet by way of a bet back is made by a bookmaker or by any person on behalf of a bookmaker on any totalisator, the bookmaker who makes the bet or on whose behalf the bet is made shall record the transaction as a bet back on the totalisator and shall retain the totalisator ticket or tickets of all losing bets for a period of one month.
- (6) A bookmaker who makes a bet back, or on whose behalf a bet back is made, with a domestic betting operator or a totalisator is not permitted to deduct the amount of the bet back from the total of the bets the bookmaker has received —
 - (a) for the race, race meeting or sporting event to which the bet relates; or
 - (b) for any other races, race meetings or sporting events in relation to which the bookmaker has accepted bets.

*[Regulation 63 amended in Gazette 24 Jun 1988 p. 2005;
10 Jul 1992 p. 3293; 21 Jul 1998 p. 3855 and 3856;
17 Dec 2002 p. 5924; 14 Jun 2013 p. 2241-2.]*

64. Bet back by means of a betting exchange

- (1) This regulation applies if a bet back is made by means of a betting exchange.
- (2) The bookmaker who makes the bet back, or on whose behalf the bet back is made, must record —
 - (a) the details of the bet; and
 - (b) the bet as a bet back; and

(c) the number of the betting ticket.

- (3) The bookmaker who makes the bet back, or on whose behalf the bet back is made, is not permitted to deduct the amount of the bet back from the total of the bets the bookmaker has received —

- (a) for the race, race meeting or sporting event to which the bet relates; or
- (b) for any other races, race meetings or sporting events in relation to which the bookmaker has accepted bets.

[Regulation 64 inserted in Gazette 14 Jun 2013 p. 2242-3.]

[65. Deleted in Gazette 13 Oct 2000 p. 5726.]

[66-67. Deleted in Gazette 10 Jul 1992 p. 3293.]

68. Cooperation with Commission in matters relating to betting disputes

A racing club, the committee or other authority controlling any racecourse or any race meeting, a steward, and any other person acting in the course of the administration of any racecourse or race meeting on behalf of any such club, committee or other authority, shall, on demand by the Commission for the purposes of these regulations, produce to the Commission any transcript of proceedings, records, letters or other relevant material in their possession taken or produced at, or relating to, any preliminary or other hearing of a betting dispute which is the subject of an appeal to the Commission.

*[Regulation 68 amended in Gazette 30 Jan 2004 p. 405;
1 Jul 2004 p. 2625.]*

[69. Deleted in Gazette 21 Jul 1998 p. 3854.]

[70. Deleted in Gazette 21 Jul 2006 p. 2673.]

71. Telephone betting on sporting events

- (1) When betting on a sporting event, or a contingency, is approved under section 4B a licensee who is so authorised by

endorsement on the licence may carry on business as a bookmaker by means of on-course telephone betting in relation to that sporting event or contingency —

- (a) in accordance with the procedures established and approved by the Commission for the conduct of such betting, and not otherwise; and
 - (b) if the committee or other authority controlling the racecourse so permits.
 - (2) For the purposes of subregulation (1) the Commission has established the following procedures —
 - (a) the telephone system to be used shall be of a type approved by the Commission; and
 - (b) all inward and outward telephone lines used for betting purposes shall have attached securable voice logging equipment of a type approved by the Commission; and
 - (c) consent to the voice logging of the betting transactions is to be obtained from all telephone bettors; and
 - (d) all betting transactions by telephone shall be recorded through the voice logging equipment; and
 - (e) the full details of each bet received, including the betting ticket number (if it is available) and account number, shall be confirmed with the bettor by the bookmaker, or an agent, manager or employee of the bookmaker, before the conclusion of the telephone conversation; and
 - (f) tapes, when used to record betting transactions, shall —
 - (i) be held and distributed by stewards; and
 - (ii) at the end of each race meeting, be collected by the Betting Steward, together with the duplicate sports betting sheets; and
 - (iii) be maintained as betting records for inspection or audit by any authorised person;
- and

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- (g) the voice logging equipment used shall be sealed by, and only accessible by or in conjunction with, a Betting Steward or other authorised person.
- (3) The details of all bets received by telephone are to be separately recorded and, for the purposes of section 15, included in the returns to be delivered under the Act.
- (4) Where an offer of a bet by telephone is not confirmed as required by the procedures established by the Commission that transaction does not constitute a valid bet.

[Regulation 71 inserted in Gazette 31 Aug 1993 p. 4677; amended in Gazette 24 Dec 1993 p. 6839; 21 Jul 1998 p. 3854; 20 Sep 2002 p. 4703; 30 Jan 2004 p. 412.]

72. Telephone betting on racing

- (1) A licensee who is so authorised by endorsement on the licence may carry on business as a bookmaker by means of on-course telephone betting in relation to racing —
 - (a) in accordance with the procedures established and approved by the Commission for the conduct of such betting;
 - (b) if the committee or other authority controlling the racecourse so permits;
 - (c) if the bet is on a race being conducted at any other race meeting in the State, if the committee or other authority controlling that other race meeting so permits,and not otherwise.
- (2) For the purposes of subregulation (1) the Commission has established and approved the following procedures —
 - (a) the telephone system to be used shall be of a type approved by the Commission; and
 - (b) all inward and outward telephone lines used for betting purposes shall have attached securable voice logging equipment of a type approved by the Commission; and

- (c) consent to the voice logging of the betting transactions is to be obtained from all telephone bettors; and
 - (d) all betting transactions by telephone shall be recorded through the voice logging equipment; and
 - (e) the full details of each bet received, including the betting ticket number (if it is available) and account number, shall be confirmed with the bettor by the bookmaker, or an agent, manager or employee of the bookmaker, before the conclusion of the telephone conversation; and
 - (f) tapes, when used to record betting transactions, shall —
 - (i) be held and distributed by stewards; and
 - (ii) at the end of each race meeting, be collected by the Betting Steward; and
 - (iii) be maintained as betting records for inspection or audit by any authorised person;and
 - (g) the voice logging equipment used shall be sealed by, and only accessible by or in conjunction with, a Betting Steward or other authorised person.
- (3) The details of all bets received by telephone are to be separately recorded and, for the purposes of section 15, included in the returns to be delivered under the Act.
- (4) A failure to confirm the details of a telephone bet in the manner required by the procedures established by the Commission does not invalidate the bet.

[Regulation 72 inserted in Gazette 24 Dec 1993 p. 6839-40; amended in Gazette 24 Jun 1997 p. 3014; 21 Jul 1998 p. 3854 and 3855; 13 Oct 2000 p. 5727; 20 Sep 2002 p. 4703; 25 Mar 2003 p. 921-2; 20 Jun 2003 p. 2250; 30 Jan 2004 p. 412; 1 Jul 2004 p. 2625-6.]

73. Credit betting other than by telephone

- (1) For the purposes of section 31(1)(b)(iii) where a bet is made on credit the bookmaker may, instead of delivering the betting ticket to the bettor, make the ticket available for collection by the bettor.
- (2) Subregulation (1) does not apply to a bet back.

Note:

The requirement to write and deliver to the bettor a betting ticket does not apply to bets made by telephone in accordance with the regulations, see section 31(1)(b)(iii) of the Act.

[Regulation 73 inserted in Gazette 21 Jul 1998 p. 3854; amended in Gazette 17 Dec 2002 p. 5924; 14 Jun 2013 p. 2243.]

74. Internet betting (sporting events)

When betting on a sporting event, or a contingency, is approved under section 4B a licensee who is so authorised by endorsement on the licence may carry on business as a bookmaker by means of on-course internet betting, in relation to that sporting event or contingency —

- (a) in accordance with the procedures established and approved by the Commission under regulation 76 for the conduct of internet betting; and
- (b) if the committee or other authority controlling the racecourse so permits,

and not otherwise.

[Regulation 74 inserted in Gazette 26 Nov 1999 p. 5909; amended in Gazette 30 Jan 2004 p. 412.]

75. Internet betting (racing)

A licensee who is so authorised by endorsement on the licence may only carry on business as a bookmaker by means of on-course internet betting in relation to racing —

- (a) in accordance with the procedures established and approved by the Commission under regulation 76 for the conduct of internet betting;
- (b) if the committee or other authority controlling the racecourse so permits;
- (c) if the bet is on a race being conducted at any other race meeting in the State, if the committee or other authority controlling that other race meeting so permits,

and not otherwise.

[Regulation 75 inserted in Gazette 26 Nov 1999 p. 5909-10; amended in Gazette 20 Sep 2002 p. 4703-4; 25 Mar 2003 p. 922; 20 Jun 2003 p. 225; 30 Jan 2004 p. 412; 1 Jul 2004 p. 2626.]

76. Procedures for internet betting

- (1) For the purposes of regulations 74 and 75 the Commission has established the following procedures —
 - (a) any internet betting system shall be developed in accordance with the Commission's specifications;
 - (b) an internet betting system shall not be used unless it is first audited and approved by the Commission;
 - (c) an approved internet betting system shall not be modified or changed unless consent for the specific modification or change is obtained from the Commission;
 - (d) any internet betting using an approved internet betting system shall be conducted in accordance with any further conditions that are imposed by the Commission, as part of the licence endorsement, under regulation 14;
 - (e) any internet bet using an approved internet betting system shall be confirmed in a manner, and within a time, that the Commission approves;
 - (f) an internet betting ticket —
 - (i) may be written in such a form; and

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- (ii) notwithstanding section 31(1)(b)(iii), is to be delivered (or not delivered) in a manner, approved by the Commission.
- (2) Where an internet bet is not confirmed in the manner or within the time approved by the Commission, that transaction does not constitute a valid bet.
- (3) The details of all internet bets received are to be separately recorded in a format approved by the Commission under regulation 37 and, for the purposes of section 15, included in the returns to be delivered under the Act.

[Regulation 76 inserted in Gazette 26 Nov 1999 p. 5910; amended in Gazette 30 Jan 2004 p. 406 and 412.]

77. Form of search warrant

A search warrant for the purposes of section 28A of the Act is to be in the form of Form 1 in Schedule 1.

[Regulation 77 inserted in Gazette 30 Jan 2004 p. 406.]

Part 4 — General conditions relating to bets made at or through on-course totalisators and local on-course totalisators

[Heading inserted in Gazette 21 Jul 2006 p. 2673.]

Division 1 — Preliminary

[Heading inserted in Gazette 21 Jul 2006 p. 2673.]

78. Terms used

(1) In this Part —

*Australian Greyhound Racing Rules, Australian Rules of
Harness Racing and Australian Rules of Racing* have the
meanings given in the RWWA Act;

local on-course totalisator means —

- (a) a totalisator operated at a racecourse by the authority
conducting the particular race meeting where totalisator
betting is conducted independently of RWWA;
- (b) where the context requires, a person representing the
authority operating the totalisator in paragraph (a);
- (c) where the context requires, the premises in which the
betting for a totalisator in paragraph (a) is conducted;

on-course totalisator means —

- (a) a totalisator operated at a racecourse by the racing club,
where bets form a part of the RWWA totalisator scheme
under section 58 of the RWWA Act;
- (b) where the context requires, a representative of the racing
club operating the totalisator in paragraph (a);
- (c) where the context requires, the premises in which the
betting for a totalisator in paragraph (a) is conducted.

(2) For removal of doubt, a reference in this Part to a bet includes a
reference to a wager.

[Regulation 78 inserted in Gazette 21 Jul 2006 p. 2673-4.]

**Division 2 — Betting with on-course and local
on-course totalisators**

[Heading inserted in Gazette 21 Jul 2006 p. 2674.]

79. On-course totalisator bets accepted subject to the rules and these regulations

- (1) Subject to these regulations, regulations made under the RWWA Act and the rules of wagering, a bet made with or through an on-course totalisator is taken to be accepted subject to —
 - (a) in relation to a race that takes place in this State, the rules of racing, and in particular to the provisions of those rules in respect of the entry, acceptance, withdrawal, or disqualification of horses or greyhounds, the running of races, and the powers of the stewards; and
 - (b) in relation to a race that takes place in another State or a Territory, the Australian Greyhound Racing Rules, the Australian Rules of Harness Racing and the Australian Rules of Racing, and the rules of thoroughbred racing or the rules of harness racing or the rules of greyhound racing (as the case may be) administered by the thoroughbred racing, harness racing or greyhound authority in the State or Territory where the race takes place, and in particular to the provisions of those rules in respect of the entry, acceptance, withdrawal, or disqualification of horses or greyhounds, the running of races, and the powers of the stewards; and
 - (c) in relation to a sporting event, the rules of the sporting authority recognised by RWWA as responsible for the conduct of that sporting event; and
 - (d) where the bet is placed by RWWA in a totalisator pool — regulations made under the RWWA Act and the provisions of these regulations governing the operation of that totalisator pool by RWWA; and

- (e) where the bets are to be included in a combined totalisator pool scheme — the regulations or rules governing the operation of that totalisator pool.
- (2) Any question as to whether a body is an authority recognised by RWWA for the purposes of these regulations is to be determined by RWWA.

[Regulation 79 inserted in Gazette 21 Jul 2006 p. 2674-5.]

80. Local on-course totalisator bets accepted subject to the rules and these regulations

Subject to these regulations and the rules of wagering, a bet made with or through a local on-course totalisator is taken to be accepted subject to —

- (a) the rules of racing, and in particular to the provisions of those rules in respect of the entry, acceptance, withdrawal, or disqualification of horses or greyhounds, the running of races, and the powers of the stewards; and
- (b) the regulations or rules governing the operation of the totalisator pool in which the bet is to be included.

[Regulation 80 inserted in Gazette 21 Jul 2006 p. 2675-6.]

81. All bets to be 50 cents or multiples of 50 cents

- (1) Subject to subregulation (3), the minimum bet that may be made with or through an on-course totalisator or a local on-course totalisator is to be a unit of 50 cents and larger bets are to be made in multiples of 50 cents.

[(2) deleted]

- (3) The minimum amount of a Flexi Bet made with or through an on-course totalisator or a local on-course totalisator is an amount determined by reference to the Rules of Wagering.

*[Regulation 81 inserted in Gazette 21 Jul 2006 p. 2676;
amended in Gazette 18 Sep 2007 p. 4717; 8 Mar 2016 p. 669.]*

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82. On-course totalisator dividend as declared

- (1) The on-course totalisator dividend for a unit of 50 cents is to be as declared —
 - (a) where the bet is placed in a totalisator pool conducted by RWWA — by RWWA, on the race or races or the sporting event on which the bet was made; or
 - (b) where the bet is to be included in another totalisator pool scheme — by the organisation controlling, and in accordance with the regulations or rules governing the operation of, that totalisator pool.
- (2) Subject to these regulations and the rules of wagering, where a totalisator pool is conducted by RWWA, RWWA is to —
 - (a) after allowing for refunds, deduct the prescribed commission from the sum of the bets included in the totalisator pool; and
 - (b) add any jackpot under these regulations or the rules of wagering, or any supplementary amount set aside for that purpose under section 103 of the RWWA Act; and
 - (c) calculate, declare and pay the dividend in respect of each unit to the holder of each winning ticket.
- (3) Except where a race or sporting event results in a dead heat, tie or draw, and a dead heat, tie or draw is not an outcome that can be nominated in the bet, the minimum dividend in respect of a bet for a unit of 50 cents —
 - (a) is not to be less than 50 cents; and
 - (b) despite the dividend calculated being less than 55 cents, may be declared and paid by RWWA or the organiser of another totalisator pool, (as the case may be), as a dividend somewhere between 50 cents and 55 cents, as determined by RWWA or the organiser of the other totalisator pool.

*[Regulation 82 inserted in Gazette 21 Jul 2006 p. 2676-7;
amended in Gazette 8 Mar 2016 p. 669.]*

83. Local on-course totalisator dividend as declared

- (1) The local on-course totalisator dividend for a unit of 50 cents is to be as declared by the racing club or other organisation controlling, and in accordance with the regulations or rules governing the operation of, that totalisator pool.
- (2) Subject to these regulations and the rules of wagering, the local on-course totalisator is to —
 - (a) after allowing for refunds, deduct the prescribed commission from the sum of the bets included in the totalisator pool; and
 - (b) calculate, declare and pay the dividend in respect of each unit to the holder of each winning ticket.
- (3) Except where a race results in a dead heat, and a dead heat is not an outcome that can be nominated in the bet, the minimum dividend in respect of a bet for a unit of 50 cents —
 - (a) is not to be less than 50 cents; and
 - (b) despite the dividend calculated being less than 55 cents, may be declared and paid by the local on-course totalisator or the organiser of another totalisator pool, (as the case may be), as a dividend somewhere between 50 cents and 55 cents, as determined by the local on-course totalisator or the organiser of the other totalisator pool.

*[Regulation 83 inserted in Gazette 21 Jul 2006 p. 2677-8;
amended in Gazette 8 Mar 2016 p. 669.]*

84. Bets may be refused

- (1) An on-course totalisator, unless otherwise directed by RWWA, is authorised to refuse to accept, at any time and without giving any reason, all or any part of the amount of any bet offered to be made.
- (2) A local on-course totalisator is authorised to refuse to accept, at any time and without giving any reason, all or any part of the amount of any bet offered to be made.

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- (3) Any bet offered to be made by or on behalf of a person apparently under the age of 18 years must not be accepted.
- (4) Any bet offered to be made by or on behalf of a person to whom a “warning off” notice has been given under regulation 72(1) of the *Racing and Wagering Western Australia Regulations 2003*, while that notice is in force, must not be accepted.

[Regulation 84 inserted in Gazette 21 Jul 2006 p. 2678.]

85. Only authorised bets to be accepted

Bets with or through an on-course totalisator or a local on-course totalisator are to be accepted —

- (a) subject to these regulations and the rules of wagering; and
- (b) only in respect of such race meetings or races, or (where applicable) such sporting events, as RWWA authorises in relation to that on-course totalisator.

[Regulation 85 inserted in Gazette 21 Jul 2006 p. 2678-9.]

86. Hours for opening

- (1) Subject to subregulations (2) and (3), bets made by the deposit of the amount of the bet in cash are to be accepted during the hours the on-course totalisator or the local on-course totalisator is open for the acceptance of those bets.
- (2) RWWA, or an on-course totalisator subject to the approval of RWWA, may at any time close the on-course totalisator and decline to accept bets or bets of a particular kind.
- (3) A local on-course totalisator may at any time close that totalisator and decline to accept bets or bets of a particular kind.

[Regulation 86 inserted in Gazette 21 Jul 2006 p. 2679.]

87. Bets may be made by various methods

- (1) Subject to these regulations and the rules of wagering, bets with or through an on-course totalisator will be accepted from a person at that totalisator —
 - (a) on cash payment at the totalisator; or
 - (b) if instructions relate to, and a bet is made against, a previously established RWWA betting account.
- (2) In addition to the circumstances set out in subregulation (1), a local on-course totalisator may accept a bet where part or full payment for the bet is —
 - (a) in the form of a betting voucher for money's worth issued by the authority in control of the local on-course totalisator; or
 - (b) by means of a winning ticket.
- (3) In addition to the circumstances set out in subregulation (1), an on-course totalisator may accept a bet where part or full payment for the bet is —
 - (a) in the form of a betting voucher for money's worth issued by RWWA or the authority in control of the on-course totalisator; or
 - (b) by means of a winning ticket.
- (4) RWWA may at any time direct that a particular on-course totalisator is not to accept bets sought to be made by a particular method, and the on-course totalisator is to comply with that direction.

[Regulation 87 inserted in Gazette 21 Jul 2006 p. 2679-80.]

88. On-course totalisator bets to be properly marked

- (1) An on-course totalisator is not required to accept any bet unless the person making the bet clearly indicates all details and other information required to identify the type and amount of the bet.

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- (2) Despite subregulation (1), a person may submit a betting ticket at an on-course totalisator for a race with the race meeting designation or race number selection incomplete, in which case the next race at the racecourse will be selected.
- (3) An on-course totalisator is not to accept instructions for alternative bets in the event of the horse or greyhound selected being scratched or participants in a sporting event not taking part.

[Regulation 88 inserted in Gazette 21 Jul 2006 p. 2680.]

89. Local on-course totalisator bets to be properly marked

- (1) A local on-course totalisator is not required to accept any bet unless the person making the bet clearly indicates all details and other information required to identify the type and amount of the bet.
- (2) Despite subregulation (1), a person may submit a betting ticket at a local on-course totalisator for a race with the race meeting designation or race number selection incomplete, in which case the next race at the racecourse will be selected.
- (3) A local on-course totalisator is not to accept instructions for alternative bets in the event of the horse or greyhound selected being scratched.

[Regulation 89 inserted in Gazette 21 Jul 2006 p. 2681.]

90. Tickets to be properly marked

- (1) Every ticket issued by an on-course totalisator or local on-course totalisator is to be printed, written, stamped, punched or marked to show the kind of bet and, in the case of a bet on a race or races, other than a favourite numbers bet —
 - (a) the designation of the race meeting and the date of the race meeting where the race on which the bet to which the ticket relates is to be run; and
 - (b) the number of the race or races in respect of which the ticket is issued; and

- (c) the code number that has been allocated by RWWA to the horse or greyhound or horses or greyhounds on which the bet in respect of which the ticket is issued is made,

together with sufficient details to identify the bet accepted.
- (1a) A ticket issued by an on-course totalisator or local on-course totalisator must show details of the amount of the bet and —
 - (a) where the bet is not a Flexi Bet, the amount is to be expressed in units of 50 cents;
 - (b) where the bet is a Flexi Bet, the amount may be expressed in units of 50 cents, percentages of 50 cent units or fractions of units of 50 cents.
- (2) A ticket issued by an on-course totalisator for a bet on a sporting event is to be printed, written, stamped, punched or marked to show the kind of bet and the description and date of the event and the participants in respect of which the bet is made, together with sufficient details to identify the bet accepted and the amount of the bet expressed in units of 50 cents.

*[Regulation 90 inserted in Gazette 21 Jul 2006 p. 2681-2;
amended in Gazette 18 Sep 2007 p. 4717-18.]*

91. Host racing club to exhibit notices at on-course totalisator and local on-course totalisator

- (1) The authority controlling the race meeting (**host club**) is, so far as is practicable, to cause notices to be exhibited at both an on-course totalisator and a local on-course totalisator showing the names and numbers of the horses and greyhounds known to have accepted as starters for races for the race meetings for which the totalisator will receive bets, the date and RWWA code or designation of each such race meeting, the numbers of races and the numbers allotted to the horses or greyhounds including any brackets or other distinguishing mark of any double or other combination of races or kind of bet, as may be necessary for the proper identification of bets.

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- (2) Bets with or through either an on-course totalisator or a local on-course totalisator are to be accepted, in the case of betting on a race or races, or in respect of a race meeting or race meetings, only in respect to runners accepted as starters and in accordance with any notice which may be exhibited.
- (3) A person cannot place, and neither an on-course totalisator nor a local on-course totalisator can accept, a bet on a race before the official publication of acceptances for that race.

[Regulation 91 inserted in Gazette 21 Jul 2006 p. 2682.]

92. Correction of errors and omissions and the giving of certain refunds

- (1) If a ticket has been issued by an on-course totalisator or a local on-course totalisator and there is recorded on the ticket in respect of a race meeting or (where applicable) a sporting event either an incorrect date or incorrect designation of the race meeting or sporting event, or if either of those particulars is omitted, the relevant totalisator may, if satisfied that the record or omission is an error and that it is manifest that the ticket was issued and intended to apply to a particular bet, treat the ticket in the manner apparently intended by the investor and the bet is to be taken to have been made accordingly.
- (2) Subject to this regulation, the person to whom a ticket is issued by an on-course totalisator or a local on-course totalisator may cancel that ticket —
 - (a) more than 30 minutes prior to the advertised starting time for the race or sporting event, for any reason; or
 - (b) within 30 minutes prior to the advertised starting time for the race or sporting event, if the cancellation is —
 - (i) requested within 2 minutes of the ticket being issued or the closing sell time, whichever occurs first; and
 - (ii) to correct an error or omission.

- (3) Despite subregulation (2), on days designated as “major race days” by the Commission, a person who has made a bet in person with or through an on-course totalisator or a local on-course totalisator may cancel the bet prior to the close of betting on the race to which the bet relates, and receive a refund of the bet if the amount of the bet was less than \$200.
- (4) If the bet in respect of which a ticket was issued is one which cannot be recorded on a totalisator, or is one for which notices exhibited by RWWA or the racing club (as required) at the relevant totalisator at the time the ticket is issued are not in accordance with these regulations, the person to whom the ticket belongs is entitled to a refund of the amount shown on the ticket.
- (4a) Where a ticket is issued as a result of a wager being made, but the person does not have sufficient funds to pay for that wager, that ticket may be cancelled immediately by RWWA or the racing club authorised to operate the totalisator.
- (4b) In exceptional circumstances, including equipment failure or where a ticket is misread electronically, RWWA, or the racing club authorised to operate the totalisator, may cancel a ticket at any time before the declaration of dividends.
- (5) Unless subregulation (1) applies, where a ticket is incomplete as to any of the particulars required to be shown on the ticket, or if —
- (a) in the case of an on-course totalisator, any of those particulars are in the opinion of RWWA ambiguous; or
 - (b) in the case of a local on-course totalisator, any of those particulars are ambiguous,
- the person to whom the ticket belongs is entitled only to a refund of the amount shown on the ticket.
- (6) When a ticket is presented for the payment of a dividend or refund or for the purpose of correcting an alleged error, if the ticket has been altered, mutilated or defaced, the relevant totalisator may reject the ticket and the person to whom the

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ticket belongs is not entitled to any dividend or refund in relation to that ticket.

[Regulation 92 inserted in Gazette 21 Jul 2006 p. 2683-4; amended in Gazette 10 Oct 2006 p. 4392.]

93. Time for payment of dividends or refunds for cash bets

- (1) Dividends or refunds are payable in respect of the running of any race or (where relevant) the holding of any sporting event, subject to subregulation (2), during the notified hours and days of business for a period of 7 months.
- (2) Refunds in respect of tickets may be paid at any time when the relevant totalisator is open for the receiving of bets, except that where dividends in respect of the same ticket may still become payable at a future time refunds due in respect of any race meeting, race or (where relevant) sporting event to which that ticket relates are payable only at the same time as, or after, those dividends would have become payable.

[Regulation 93 inserted in Gazette 21 Jul 2006 p. 2684-5.]

94. Presentation of tickets or claims

- (1) Subject to subregulations (2) and (6), a dividend or refund in respect of a bet, other than a bet against a betting account, in cash made with or through an on-course totalisator or a local on-course totalisator is to be paid upon the presentation and surrender of the ticket issued for that bet.
- (2) The relevant totalisator may, upon the presentation or surrender of a ticket issued for a bet, refuse to pay a dividend or refund in respect of that bet if there are reasonable grounds to suspect that the person presenting the ticket is not entitled to that dividend or refund.
- (3) The payment of any dividend or refund is to be made in cash unless the particular totalisator decides to make the payment by cheque or otherwise by the transfer of moneys.

- (4) Subject to subregulation (6), an on-course totalisator or a local on-course totalisator may pay to a person any dividend or refund that is payable in respect of a ticket issued for a bet without the presentation and surrender of the ticket, if the person making the claim for the dividend or refund proves to the satisfaction of the appropriate totalisator —
- (a) that the ticket has been lost or destroyed; and
 - (b) that the person is the person entitled to the dividend or refund.
- (5) An on-course totalisator or a local on-course totalisator may —
- (a) require a person making a claim for a dividend or refund to verify the claim in a manner required by RWWA, and may require verification of the claim by statutory declaration; and
 - (b) pay the dividend or refund to which a claim made under paragraph (a) relates at such time as the authority controlling the race meeting determines; and
 - (c) deduct from the amount of any dividend or refund paid under subregulation (4) the amount of the out-of-pocket expenses actually incurred by the relevant totalisator, including stamp duty if any, in connection with the establishment and payment of the claim.
- (6) An on-course totalisator or a local on-course totalisator may refuse to pay a dividend or refund in respect of a bet made if the dividend or refund has already been paid under this regulation.

[Regulation 94 inserted in Gazette 21 Jul 2006 p. 2685-6.]

95. When refunds of bets are payable

- (1) Subject to subregulation (2) and the rules of wagering, where a runner (or one of the runners) on which a bet, other than a favourite numbers bet, has been placed with or through an on-course totalisator or a local on-course totalisator is scratched before the start of its race or declared a non-starter, a person

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who placed a bet on (or involving) that runner is entitled to a refund of that bet.

- (2) Where a refund is payable under subregulation (1) due to a scratching, and the person entitled to the refund wishes to obtain that refund prior to the running of the race, that person may, on request, obtain a refund of —

- (a) the bet; or
- (b) if the bet is on one of 2 or more bets recorded on the same ticket, and none of the bets have been decided — the total value of that ticket,

prior to the running of the race, if the request is made before the close of betting for each and every race to which the ticket relates.

- (3) If a race meeting or a race at a race meeting is postponed from one day to another or is abandoned, an on-course totalisator or a local on-course totalisator is to refund all of the amounts of bets made in respect of races that were to be but were not held on that day at that race meeting other than —

- (a) double event bets in respect of which the first leg of the double event has already been run; and
- (b) favourite number bets; and
- (c) quaddie bets, where a race nominated as part of that quaddie has already been successfully run or remains to be run.

- (4) Subject to these regulations and the rules of wagering, where a sporting event, or any match comprising part of a sporting event, does not occur or is abandoned or does not run its full course or is postponed from one day to another, all of the amounts of bets made in respect of that sporting event or match, as the case may be, are to be refunded by an on-course totalisator.

- (5) Refunds of bets accepted may also be made by an on-course totalisator or a local on-course totalisator in other circumstances

provided for in these regulations and in circumstances provided for in the rules of wagering.

- (6) Refunds of moneys may also be made by an on-course totalisator or a local on-course totalisator in other circumstances provided for in these regulations and in circumstances provided for in the rules of wagering.

[Regulation 95 inserted in Gazette 21 Jul 2006 p. 2686-8.]

Division 3 — Miscellaneous discipline and offence provisions

[Heading inserted in Gazette 21 Jul 2006 p. 2688.]

96. Person making bet bound by these regulations, the rules of wagering and instructions

- (1) A person making a bet with or through an on-course totalisator or a local on-course totalisator, or attempting to make such a bet, is taken to accept and be bound by the relevant provisions of these regulations, regulations made under the RWWA Act and the rules of wagering.
- (2) Each racing club is to ensure that copies of these regulations, regulations made under the RWWA Act and the rules of wagering are, so far as is practicable, made available at its main office for perusal on demand.

[Regulation 96 inserted in Gazette 21 Jul 2006 p. 2688.]

97. Offences relating to making and accepting wagers

- (1) The offences set out in this regulation are committed by a person if that person is —
- (a) a person representing the authority operating a local on-course totalisator; or
 - (b) a representative of the racing club operating an on-course totalisator; or
 - (c) a person employed or otherwise engaged to assist in the operation of an on-course totalisator or a local on-course totalisator.

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- (2) A person who knowingly accepts a wager contrary to regulation 84(4) commits an offence.
Penalty: \$500.
- (3) A person who accepts a cheque as part or full payment for a wager commits an offence.
Penalty: \$500.
- (4) A person who accepts a wager contrary to —
(a) a method allowed by regulation 87; or
(b) in the case of an on-course totalisator, a direction given by RWWA under regulation 87(4),
commits an offence.
Penalty: \$500.
- (5) A person who makes a personal wager while on duty in an on-course totalisator or a local on-course totalisator commits an offence.
Penalty: \$500.

[Regulation 97 inserted in Gazette 21 Jul 2006 p. 2688-9.]

Part 5 — Approval to publish or make available WA race fields

[Heading inserted in Gazette 22 Jun 2007 p. 2863.]

98. Terms used

In this Part —

another jurisdiction means a jurisdiction outside Australia;

approval means an approval under section 27D(2) of the Act;

authorisation includes a licence;

betting includes —

- (a) carrying on the business or vocation of, or acting as, a bookmaker; or
- (b) conducting betting by the operation of a totalisator; or
- (c) operating a betting exchange (however described); or
- (d) gaining or endeavouring to gain a livelihood wholly or partly by making bets;

relevant person, in relation to a decision by the Commission under section 27D(5) of the Act relating to an approval, means the person applying for, or holding, the approval, as the case requires.

[Regulation 98 inserted in Gazette 8 Jan 2010 p. 20.]

99. Prescribed criteria: section 27D(5)

- (1) For the purposes of section 27D(5) of the Act the prescribed criteria are as follows —

- (a) whether the Commission is satisfied that —
 - (i) the relevant person; or
 - (ii) if the relevant person is a partnership, each member of the partnership who is a natural person,
is, or continues to be, a fit and proper person to be granted, or continue to hold, an approval;
- (b) if the relevant person is —

- (i) a body corporate; or
 - (ii) a partnership, the members of which include a body corporate,
 - whether the Commission is satisfied that each person who occupies a position of authority in the body corporate would be a fit and proper person to be granted, or continue to hold, an approval if the person were to apply for, or hold, the approval personally;
 - (c) whether a member of the staff of the relevant person is under 18 years of age;
 - (d) if the relevant person conducts, or intends to conduct, betting that is required under the laws of this State, another State, a Territory or another jurisdiction to be licensed or otherwise authorised, whether the relevant person holds, or continues to hold, the required authorisation to do so;
 - (e) whether the relevant person has failed to comply with a condition on an approval imposed under section 27D(3) of the Act or a condition to which an approval is subject under section 27D(4A) of the Act.
- (2) For the purpose of, and without limiting, subregulation (1)(a) and (b), the Commission may take into account —
- (a) the reputation and background of persons suspected by the Commission to be associated with the relevant person; and
 - (b) the number and nature of any convictions recorded, or charges pending, against the relevant person or another person referred to in subregulation (1)(a)(ii) or (b) for offences against the laws of this State, another State, a Territory or another jurisdiction, having particular regard to offences against laws relating to wagering.

[Regulation 99 inserted in Gazette 8 Jan 2010 p. 20-1.]

100. Application for approval

- (1) An application for an approval —
 - (a) is to be in the form approved by the Commission; and
 - (b) is to be accompanied by any information required by the application form.
- (2) An applicant for an approval is to provide to the Commission any further information that the Commission reasonably requires for the proper consideration of the application.

*[Regulation 100 inserted in Gazette 22 Jun 2007 p. 2865;
amended in Gazette 8 Jan 2010 p. 21.]*

Part 6 — Racing bets levy

[Heading inserted in Gazette 8 Jan 2010 p. 22.]

101. Term used: approved offshore betting operator

In this Part —

approved offshore betting operator means the holder of an approval under section 27D(2) of the Act.

[Regulation 101 inserted in Gazette 8 Jan 2010 p. 22.]

102. Prescribed period: section 14A(2)(a)

- (1) For the purposes of section 14A(2)(a) of the Act, in respect of racing bets placed with, or placed or accepted through, a betting operator on or after 1 September 2008 and before the day on which the paragraph comes into operation (the ***commencement day***), the period prescribed is 28 days beginning on the commencement day.

- (2) For the purposes of section 14A(2)(a) of the Act, in respect of racing bets placed with, or placed or accepted through, a betting operator on or after the commencement day, the period prescribed is 14 days beginning on the first day of each month.

[Regulation 102 inserted in Gazette 8 Jan 2010 p. 22.]

103. Information prescribed: section 27D(4A)(a)

For the purposes of section 27D(4A)(a) of the Act, the prescribed information is information in documents, records or accounts relating to racing bets placed with, or placed or accepted through, an approved offshore betting operator on or after 1 September 2008.

[Regulation 103 inserted in Gazette 8 Jan 2010 p. 22.]

**104. Manner of access to prescribed information:
section 27D(4A)(a)**

- (1) For the purposes of section 27D(4A)(a) of the Act, this regulation sets out the prescribed manner of access to

information prescribed under regulation 103 (*prescribed information*).

- (2) An approved offshore betting operator must give the Commission or an officer of RWWA approved under section 27D(4A)(a) of the Act (the *approved officer*) access to prescribed information by —
 - (a) allowing the Commission or an approved officer to view any document, record or accounts of the operator containing the information; and
 - (b) giving the Commission or an approved officer a copy of any document, record or accounts containing the information requested by the Commission or officer.
- (3) An approved offshore betting operator must give the Commission or an approved officer access to prescribed information by —
 - (a) allowing the Commission or the approved officer to have real-time access to any computerised betting system of the holder if it is reasonably practicable to do so; and
 - (b) giving the Commission or the approved officer the capability to download and print out any such information.

[Regulation 104 inserted in Gazette 8 Jan 2010 p. 22-3]

105. Prescribed conditions: section 27D(4A)(b)

- (1) For the purposes of section 27D(4A)(b) of the Act, the prescribed conditions that an approved offshore betting operator must comply with are set out in this regulation.
- (2) An approved offshore betting operator must give authorised officers of the Commission or the Chief Steward of RWWA, at such times or locations as requested by an authorised officer or the Chief Steward, access to any document or information in the operator's possession or control relating to the integrity of or reputation of the Western Australian racing industry.

- (3) An approved offshore betting operator must give authorised officers of the Commission or the Chief Steward of RWWA, at such times or locations as requested by an authorised officer or the Chief Steward, wagering information and analysis relating to betting on races referred to in a WA race field.
- (4) An approved offshore betting operator must allow authorised officers of the Commission or the Chief Steward of RWWA, at such times or locations as requested by an officer or the Chief Steward, to monitor wagering transactions and activities relating to betting on races referred to in a WA race field.
- (5) An approved offshore betting operator must give authorised officers of the Commission or the Chief Steward of RWWA —
 - (a) real-time access to any computerised betting system of the holder if it is reasonably practicable to do so; and
 - (b) the capability to download and print out any information on the system relating to betting on races referred to in a WA race field.
- (6) An approved offshore betting operator must report to an authorised officer of the Commission and the Chief Steward of RWWA any matter that the operator considers may affect the integrity or reputation of the Western Australian racing industry.
- (7) An approved offshore betting operator must, when requested by an authorised officer of the Commission and the Chief Steward of RWWA, assist in any inquiry relating to the integrity of or reputation of the Western Australian racing industry and —
 - (a) allow the person conducting the inquiry to view any document relevant to the inquiry; and
 - (b) give the person conducting the inquiry a copy of any document relevant to the inquiry.
- (8) An approved offshore betting operator must in relation to races referred to in a WA race field maintain appropriate and adequate internal procedures, systems and controls to —
 - (a) maintain and accurately record all betting transactions and account details of clients; and

- (b) identify suspect betting transactions; and
- (c) protect the records and any computer system of the operator from unauthorised access; and
- (d) enable compliance with the conditions set out in this regulation.

[Regulation 105 inserted in Gazette 8 Jan 2010 p. 23-4.]

106. Information prescribed: section 27F(2)(a)

For the purposes of section 27F(2)(a) of the Act, the prescribed information is information in documents, records or accounts relating to racing bets placed with, or placed or accepted through, a domestic betting operator on or after 1 September 2008.

[Regulation 106 inserted in Gazette 8 Jan 2010 p. 24.]

107. Manner of access to prescribed information: section 27F(2)(a)

- (1) For the purposes of section 27F(2)(a) of the Act, this regulation sets out the prescribed manner of access to information prescribed under regulation 106 (*prescribed information*).
- (2) A domestic betting operator must give the Commission or an officer of RWWA approved under section 27F(2)(a) of the Act (the *approved officer*) access to prescribed information by —
 - (a) allowing the Commission or an approved officer to view any document, record or accounts of the operator containing the information; and
 - (b) giving the Commission or an approved officer a copy of any document, record or accounts containing the information requested by the Commission or officer.
- (3) A domestic betting operator must give the Commission or an approved officer access to prescribed information by —
 - (a) allowing the Commission or the approved officer to have real-time access to any computerised betting

system of the holder if it is reasonably practicable to do so; and

- (b) giving the Commission or the approved officer the capability to download and print out any such information.

[Regulation 107 inserted in Gazette 8 Jan 2010 p. 24-5.]

108. Prescribed conditions: section 27F(2)(b)

- (1) For the purposes of section 27F(2)(b) of the Act, the prescribed conditions that a domestic betting operator must comply with are set out in this regulation.
- (2) A domestic betting operator must give authorised officers of the Commission or the Chief Steward of RWWA, at such times or locations as requested by an authorised officer or the Chief Steward, access to any document or information in the operator's possession or control relating to the integrity of or reputation of the Western Australian racing industry.
- (3) A domestic betting operator must give authorised officers of the Commission or the Chief Steward of RWWA, at such times or locations as requested by an authorised officer or the Chief Steward, wagering information and analysis relating to betting on races referred to in a WA race field.
- (4) A domestic betting operator must allow authorised officers of the Commission or the Chief Steward of RWWA, at such times or locations as requested by an officer or the Chief Steward, to monitor wagering transactions and activities relating to betting on races referred to in a WA race field.
- (5) A domestic betting operator must give authorised officers of the Commission or the Chief Steward of RWWA —
 - (a) real-time access to any computerised betting system of the holder if it is reasonably practicable to do so; and
 - (b) the capability to download and print out any information on the system relating to betting on races referred to in a WA race field.

- (6) A domestic betting operator must report to an authorised officer of the Commission and the Chief Steward of RWWA any matter that the operator considers may affect the integrity or reputation of the Western Australian racing industry.
- (7) A domestic betting operator must, when requested by an authorised officer of the Commission and the Chief Steward of RWWA, assist in any inquiry relating to the integrity of or reputation of the Western Australian racing industry and —
 - (a) allow the person conducting the inquiry to view any document relevant to the inquiry; and
 - (b) give the person conducting the inquiry a copy of any document relevant to the inquiry.
- (8) A domestic betting operator must in relation to races referred to in a WA race field maintain appropriate and adequate internal procedures, systems and controls to —
 - (a) maintain and accurately record all betting transactions and account details of clients; and
 - (b) identify suspect betting transactions; and
 - (c) protect the records and any computer system of the operator from unauthorised access; and
 - (d) enable compliance with the conditions set out in this regulation.

[Regulation 108 inserted in Gazette 8 Jan 2010 p. 25-6.]

109. Prescribed criteria: section 27F(4)

- (1) For the purposes of section 27F(4) of the Act, the prescribed criteria are as follows —
 - (a) whether the domestic betting operator has engaged in conduct that would tend to undermine the integrity or reputation of the Western Australian racing industry;
 - (b) whether the domestic betting operator is fit and proper to hold an authorisation;

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- (c) whether the domestic betting operator is authorised in this State or another State or a Territory under a law of that State or Territory to engage in or conduct the business of betting on races.
- (2) For the purpose of, and without limiting, subregulation (1)(b), the Commission may take into account the number and nature of any convictions recorded, or charges pending, against the domestic betting operator for offences against the laws of this State or another State or a Territory, having particular regard to offences against laws relating to wagering.

[Regulation 109 inserted in Gazette 8 Jan 2010 p. 26.]

110. Audited return

- (1) A betting operator must submit an audited return to the Commission before 30 August in each year unless the Commission has advised the operator in writing before that date that the operator is not required to submit an audited return that year.
Penalty: a fine of \$1 000.
- (2) The audited return referred to in subregulation (1) must, for the 12 months ending on 31 July immediately preceding 30 August, show —
 - (a) the amount of all racing bets placed with, or placed or accepted through, the betting operator; and
 - (b) the amount by way of levy paid on those bets under section 14A(2) of the Act; and
 - (c) the amount of racing bets in relation to which the levy was paid in relation to —
 - (i) gross revenue; and
 - (ii) turnover.

[Regulation 110 inserted in Gazette 8 Jan 2010 p. 27.]

Appendix

Rules of Betting

[Heading inserted in Gazette 14 Sep 1990 p. 4864.]

Part 1 — Betting under the rules of racing

[Heading inserted in Gazette 21 Jul 1998 p. 3856.]

1. Terms used

- (1) In these rules, unless the contrary intention appears —
all up bet means a bet in which the original stake and any subsequent winnings are wagered on the runners named until the contract is completed;

barrier includes starting box or starting gate;

betting sheet means the written record of a bookmaker's bets on the several runners in a race as required by the Act and regulations;

committee means the committee of the racing club holding the race meeting;

double means a bet on the contingency of 2 races;

objection includes protest;

play or pay used in relation to a bet, means a bet that holds good whether the runner to which the bet relates runs in the race in respect of which the bet is made or not;

Scale of Deduction Table means the Table set out at the end of these rules;

treble means a bet on the contingency of 3 races;

walk-over used in relation to a race, means a race in which only one runner starts.

- (2) For the purpose of these rules a runner shall be deemed to run in a race if that runner is ordered by the starter to take its place at the barrier or has been semaphored as a starter, whether or not that runner subsequently takes any part in the race, unless in a particular case the stewards declare the runner not to be a starter in the race.

*[Rule 1 amended in Gazette 21 Jul 1998 p. 3855 and 3856;
30 Jan 2004 p. 406.]*

2. Bets void in certain circumstances

- (1) A bet is void —
- (a) if, when it is made, it is not possible for the backer to win; or
 - (b) if, being made on a match or private sweepstake between 2 runners those runners after the bet is made, become the property of the same person or of a person who admits that he or she is, or is proven to be, the servant or agent of, or to be acting in collusion with, the first-mentioned person; or
 - (c) if it is made on a runner in running; or
 - (d) unless the parties to the bet agree to the contrary, if, being made in respect of particular runners neither of those runners wins the race to which the bet relates; or
 - (e) if, being made on a match between 2 runners the match results in a dead heat; or
 - (f) if it is made after the determination of the race to which it relates; or
 - (g) if it is so declared by the rules of racing or wagering; or
 - (h) if it is declared to be void by the Commission pursuant to subrule (2); or
 - (i) if it becomes void in the manner provided in rule 12.
- (2) The Commission may investigate, in such a manner as it thinks fit, any allegation of fraud or corrupt practice in relation to a bet or a race to which a bet relates, and may declare that bet, or all or any bets made in respect of that race, to be void.

[Rule 2 amended in Gazette 21 Jul 1998 p. 3855 and 3856; 18 Jan 2002 p. 284; 20 Sep 2002 p. 4704; 30 Jan 2004 p. 406 and 412.]

3. When bets are off

- (1) No bet can be declared off except by mutual consent or as hereinafter provided, that is to say —
- (a) either the backer or the bookmaker may demand bets to be confirmed before the race is run, upon proving to the committee or the stewards that he or she has just cause for so doing; if and when ordered by the committee or the stewards the bets shall be covered or sufficient security given in default of which the bets will be off;

- (b) in the event of a race being divided, all bets made on the race at fixed prices before the announcement that the race is divided are off;
- (c) all wagers with any person who after the making of the wagers has been declared a defaulter, are off;
- (d) a fixed price bet (not being a double, or a bet on the Melbourne Cup, Caulfield Cup, Sydney Cup, Perth Cup or Railway Stakes, or such other race as the Commission may declare to be a race to which this paragraph relates) that is laid on the day on which the race meeting is held is off if the runner on which the bet is laid does not run in the race to which the bet relates.

[(1a)-(3) deleted]

[Rule 3 amended in Gazette 21 Jul 1998 p. 3855; 20 Sep 2002 p. 4704; 30 Jan 2004 p. 407-8 and 412; 4 Jan 2013 p. 11.]

4A. Determination of bets where runner withdrawn

- (1) In this rule —

bet means a bet, other than a play or pay bet, made on the day of a race that is —

- (a) a win bet or a place bet; or
- (b) a bet where the person making the bet selects a combination of 2 runners in the same race on the chance that they will be first and second in that race, irrespective of the order in which they finish (known as a “quinella bet”); or
- (c) a concession bet; or
- (d) a double;

late scratched runner, in relation to a race, means —

- (a) a runner that the stewards order or permit to be withdrawn from the race after the time for withdrawal has elapsed; or
- (b) a runner that the stewards have declared to be a non-starter;

odds, against a runner winning a race, means —

- (a) subject to paragraph (b), the odds against the runner on offer at the time, and at the place, the race is being run; or

- (b) if the stewards are satisfied that the odds against the runner on offer at the time, and at the place, where the race is being run cannot be accurately determined in a timely manner, the odds determined by the stewards in a manner approved by RWWA;

percentage, for a runner in a race, means the odds against the runner winning the race, expressed as a percentage;

sum percentage, for runners in a race, means the sum of the percentages for the runners.

- (2) If, in relation to a race, there is a late scratched runner, a bookmaker must —
- (a) refund all bets on the late scratched runner and those bets are, by operation of this rule, declared off;
- (b) subject to subrule (5), pay bets on the runners calculated in accordance with the following formula —
- $$b = t - d$$
- where —
- b** is the bets to be paid;
- t** is the face value of the ticket;
- d** is the deduction declared by the stewards under subrule (3) or (4).

- (3) The stewards may —
- (a) if the sum percentage of runners is less than or equal to 140%, declare a deduction for the purposes of subrule (2)(b) calculated in accordance with the following formula —
- $$s \approx sa$$
- where —
- s** is the sum percentage of remaining runners;
- ≈** means “as close as possible to”;
- sa** is the sum percentage of remaining runners and late scratched runners,
- with the deductions applied to each remaining runner being proportional to the odds against that runner;

- (b) if the sum percentage of runners is greater than 140%, declare a deduction for the purposes of subrule (2)(b) calculated in accordance with the following formula —

$$s \approx sa - d$$

where —

- s** is the sum percentage of remaining runners;
- $\approx$ means “as close as possible to”;
- sa** is the sum percentage of remaining runners and late scratched runners;
- d** is calculated in accordance with the following formula —

$$\frac{1}{2} (sa - 140)$$

with the deductions applied to each remaining runner being proportional to the odds against that runner.

- (4) Where it is not possible for the stewards to declare a deduction in accordance with subrule (3) the stewards may declare a deduction for the purposes of subrule (2)(b) in accordance with the Scale of Deduction Table.
- (5) The amount paid in relation to a bet must —
- (a) subject to paragraph (b) —
 - (i) be at least the amount of the stake; and
 - (ii) be at least 20% of the face value of the ticket;and
 - (b) in the case of a dead-heat for a particular place, be at least the amount of the stake divided by the number of runners participating in the dead-heat.
- (6) A bookmaker is not required to settle any bet affected by the operation of this rule until all late scratched runners and the amount of any deduction declared under subrule (3) or (4) are known, despite —
- (a) the declaration of correct weight for the race; or
 - (b) any rule or regulation to the contrary,
- unless the bookmaker is specifically directed to do so by the stewards.

- (7) Despite this rule, the stewards may, in exceptional circumstances, declare all bets (other than bets made at the starting price) off and order that betting on the race be re-opened.

[Rule 4A inserted in Gazette 4 Jan 2013 p. 11-13.]

4. Determination and settlement of bets

- (1) Bets shall go to the backers of the runners placed by the judge, but if a protest or objection is entered in accordance with the rules of racing before the "Correct Weight" or "All Clear" signal has been given bets are governed by the stewards decision on the objection, except that where a runner or, if the runner is a horse, the rider or driver is disqualified, and there are circumstances in connection therewith which in the opinion of the stewards require further investigation the stewards may forthwith make an order postponing the settlement of all bets on such race pending completion of their enquiries.
- (2) Settlement of bets shall be made in accordance with the provisions of these rules.
- (3) A person to whom a betting ticket is issued by a bookmaker shall be deemed to have accepted the ticket issued to him or her and to have agreed that the particulars shown thereon are correct, unless he or she applies forthwith after the issue of the ticket to the person who issued it to have any error on or omission from the ticket rectified.
- (4) Bets on a designated sporting event shall be determined on the official results as declared by the controlling authority responsible for conducting the designated sporting event.

*[Rule 4 amended in Gazette 21 Jul 1998 p 3856 and 3857;
18 Jan 2002 p. 284; 20 Sep 2002 p. 4704; 30 Jan 2004 p. 408.]*

5. Bets in respect of postponed race or race meeting

If a race meeting, or a race at a race meeting, is postponed from one day to another, all bets thereon made on that race or race meeting on the day of the postponement but before the postponement is announced are off.

6. Each way bets

- (1) Subject to subrule (2) place betting whether or not as part of an each way bet shall be in accordance with the conditions relating to totalisator place betting on the racecourse on which the race is run.

- (2) The place bet whether or not comprised in an each way bet shall be settled as provided by subrule (4) on the first, second and third runner where there are 8 or more runners, and on the first and second runner where there are 5, 6 or 7 runners, in the race.
- (3) For the purposes of subrule (2) the number of runners in a race is —
 - (a) where the bet is made on any day prior to the day of the race, the greatest number that is in the race on the day the bet is made; and
 - (b) where the bet is made on the day of the race, the actual number that is taken as starting, under the conditions governing the place totalisator.
- (4) A winning place bet other than as part of an each way bet shall be settled at the odds given by the bookmaker and a winning place bet comprised in an each way bet shall be settled —
 - (a) where there are 8 or more runners in the race, at one-fourth of the odds for a win; and
 - (b) where there are 5, 6 or 7 runners in the race, at one-third of the odds for a win.

[Rule 6 amended in Gazette 14 Sep 1990 p. 4864; 21 Jul 1998 p. 3855 and 3856.]

7. All bets to be “play or pay” except in certain circumstances

All bets shall be play or pay, unless the parties thereto mutually agree to the contrary, with the following exceptions —

- (a) bets made on the day of the race to which they relate; and
- (b) bets on matches; and
- (c) bets made after the running numbers are officially placed on the number-board, in relation to a runner that is not subsequently under the starter’s orders; and
- (d) bets that are declared off by the stewards; and
- (e) bets on a walk-over; and
- (f) bets made at starting price.

[Rule 7 amended in Gazette 21 Jul 1998 p. 3855.]

8. Provisions as to settlement of bets following dead heat

- (1) In the event of a dead heat for first place, or, in place betting, where any of the runners to which a bet relates runs a dead heat for second or third place, as the case may be, any bet in respect of a runner involved in the dead heat shall be determined in the following manner —
 - (a) half of the amount wagered shall be regarded as “won” at the agreed odds; and
 - (b) half of the amount wagered shall be lost.
- (2) If bets are made on the result of a photo finish and before the numbers of the placed runners are exhibited and a dead heat is declared for first place, all such bets shall be void.
- (3) If a bet is made runner against runner, one to win, and one of the runners runs a dead heat for first place, the bet shall be determined in the following manner —
 - (a) half of the amount wagered shall be regarded as “won” at the agreed odds; and
 - (b) half of the amount wagered shall be lost.
- (4) If runners are backed to run first and second and the runners so backed run a dead heat for first place, or if the runner backed to run first wins the race and the runner backed to run second dead heats for second place with another runner, any bet in respect of a runner involved in the dead heat shall be determined in the following manner —
 - (a) half of the amount wagered shall be regarded as “won” at the agreed odds; and
 - (b) half of the amount wagered shall be lost.
- (5) Where a designated sporting event results in a tie, draw or dead heat, and odds are offered for that tie, draw or dead heat, any bet for a win is lost.
- (6) If no odds are offered for a tie, draw or dead heat and the designated sporting event results in a tie, draw or dead heat, then any bet for a win shall be determined in the following manner —
 - (a) half of the amount wagered shall be regarded as “won” at the agreed odds; and

- (b) half of the amount wagered shall be lost.

[Rule 8 amended in Gazette 21 Jul 1998 p. 3855, 3856 and 3857.]

9. Doubles

- (1) The provisions of this rule do not apply to bets known as multiple doubles.
- (2) Double event bets (not being multiple doubles) shall be considered play or pay, except when otherwise agreed when the bets are made, or unless otherwise by these rules provided.
- (3) Doubles (not being multiple doubles) are subject to the following conditions, namely —
 - (a) bets are determined when the first event is lost;
 - (b) if either event is decided in the backer's favour and the other results in a dead heat between 2 runners one of which was backed by the backer, the bookmaker shall pay to the backer one-half of the proceeds of the bet which would have been payable if each event had been won outright by the runner backed by the backer in the double, and if the dead heat is between more than 2 runners the amount payable by the bookmaker to the backer shall be calculated on a proportionate basis;
 - (c) if both runners backed run dead heats the bookmaker shall pay to the backer one-quarter of the proceeds of the bet which would have been payable if each event had been won outright by the runner backed by the backer in the double;
 - (d) if the runner backed for the first event wins and the runner backed for the second event does not start, the bet shall be play or pay unless otherwise agreed at the time the bet is made or otherwise provided for in these rules;
 - (e) in the case of bets made on the course on the day of the race upon which both events are run, then those bets shall be void if the first event is divided after the bet is made, but if the runner backed for one event wins and the runner backed for the other event does not come under the starter's orders, such bets shall be paid at the totalisator odds of the winner subject to a limit of 25-1 at race meetings in the metropolitan area

and Goldfields annual round, and 15-1 at race meetings in Western Australia other than these;

- (f) for the purpose of this rule, any runner in respect of which bets have been declared off by the stewards pursuant to rule 3 shall be deemed not to have come under the starter's orders;
- (g) if the bet is made before the day of the first race and either of the runners backed is scratched on or before the day when the bet is made, the money wagered shall be returned to the backer, but otherwise the bet is play or pay;
- (h) where the double is on races not run on the same day bets made on the day of the first race are void if —
 - (i) the runner chosen for the first race does not run in that race;
 - (ii) the runner chosen for the second race is scratched not later than the time of scratching for the first race;
 - (iii) the runner chosen for the first race wins and the runner chosen for the second race does not run in that race.
- (4) If a race is divided under the provisions of the rules of racing, all doubles bets (not being multiple doubles) made before the announcement that either race is to be divided stand, but the backer shall receive one-half, or (if both races are divided) one-quarter of the amount that would have been payable to the backer if the race had not been divided.

*[Rule 9 amended in Gazette 21 Jul 1998 p. 3855 and 3856;
30 Jan 2004 p. 408.]*

10. Multiple doubles

- (1) The following provisions apply to bets of the kind commonly known as multiple doubles, namely —
 - (a) bets are determined when a race to which the double relates is lost; and
 - (b) if either of the runners selected is scratched, the bet shall be determined according to the regulations or the rules of wagering or if there are no regulations or rules applicable then the stewards shall determine the manner in which the bet shall be settled; and

- (c) if both runners selected do not run in the race, the bet is void; and
 - (d) if the bet is made in respect of runners entered for more races than one to be run on the same day, the bookmaker shall write or otherwise clearly indicate on the ticket the names of the races selected by the backer of the runners.
- (2) For the purposes of these rules and the regulations, the expression **multiple double** means a double on 2 races scheduled at the time the bet is made to be run on the same day.

[Rule 10 amended in Gazette 21 Jul 1998 p. 3856; 30 Jan 2004 p. 408.]

11. “All up” bets

- (1) “All up” bets will be declared “on” only in the order written.
- (2) In the event of a race being run late or a meeting postponed the bet will be “on” in the order written.
- (3) In “all up” bets “each way” the money will each time be equally divided unless otherwise specified.
- (4) An “all up” bet contract must be fulfilled.

12. Provisions as to races that are re-run

In the event of a race being ordered to be re-run the same day, all bets in favour of any runner which started on the first run shall stand, except that in special circumstances the stewards may make such other ruling as they think fit.

[Rule 12 amended in Gazette 21 Jul 1998 p 3855.]

13. Provisions as to bets on runners that are entered for 2 or more races on same day

- (1) If a person desires to back at starting price a runner that is entered for more races than one to be run on the same day, the bet, unless otherwise specified on the betting ticket, refers to the first race in which the runner starts, and, if that race is a walk-over, no bet is made.

- (2) The provisions of subrule (1) shall not apply to “all up” bets, which shall be settled in accordance with rule 11.
- (3) If a person backs at a fixed price a runner that is entered for more races than one to be run on the same day, the bookmaker shall write or otherwise clearly indicate on the betting ticket the race selected by the backer.
- (4) Where a person backs a runner that is entered at more race meetings than one on any day, the bet, unless otherwise specified, applies to the race meeting at which the runner starts on that day.

[Rule 13 amended in Gazette 21 Jul 1998 p. 3855.]

14. Prohibition on betting after race

- (1) No bet shall be made after a race on or in anticipation of the result of a photograph unless such form of betting is expressly permitted by the rules of racing.
- (2) A bet made on a runner after a race in which the judge calls for a photograph to decide the result shall be determined by the hoisting of the numbers in the semaphore (or alternative means of the declaration of the result of the race) and not upon the hoisting of the weight flag.

[Rule 14 amended in Gazette 21 Jul 1998 p. 3855; 30 Jan 2004 p. 408.]

15. Settlement of bets on deaths of parties thereto

The death of either party to a bet shall not invalidate the bet.

16. Settlement of bets on suspension or cancellation of licence of bookmaker

If the licence of a bookmaker is suspended or cancelled, nothing in these rules or in any regulations made under the Act prevents the bookmaker from paying, after the date of the suspension or cancellation of that licence, the betting debts incurred by the bookmaker, subject to such conditions as the Commission may impose in a particular case.

[Rule 16 amended in Gazette 20 Sep 2002 p. 4704; 30 Jan 2004 p. 412.]

17. Settling

Settling in terms of these rules shall not be disturbed except in cases of fraud.

Part 2 — Betting on a sporting event, or a contingency, approved under section 4B

[Heading inserted in Gazette 10 Jul 1992 p. 3294.]

- 1.** Bets shall be determined on the official results as declared by the controlling authority responsible for conducting the sporting event to which the bets relate.

[Rule 1 inserted in Gazette 10 Jul 1992 p. 3294.]

- 2.** Any outcome not covered by these rules shall be determined by the stewards acting at the race meeting where the bet was laid.

[Rule 2 inserted in Gazette 10 Jul 1992 p. 3294.]

- [3. Deleted in Gazette 25 Sep 2009 p. 3752.]*

- 4.** Where a sporting event or contingency results in a tie, draw or dead heat, and odds are offered for that tie, draw or dead heat, any bet for a win is lost.

[Rule 4 inserted in Gazette 10 Jul 1992 p. 3294.]

- 5.** If no odds are offered for a tie, draw or dead heat and the event or contingency results in a tie, draw or dead heat between 2 teams or 2 competitors, then, unless the betting on the outcome involves a points margin, any bet for a win shall be determined in the following manner —

- (i) half of the amount wagered shall be regarded as “won” at the agreed odds; and
- (ii) half of the amount wagered shall be lost.

[Rule 5 inserted in Gazette 10 Jul 1992 p. 3294; amended in Gazette 25 Sep 2009 p. 3752.]

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Part 2 Betting on a sporting event, or a contingency, approved under section 4B

6. In bets involving more than one contingency of, or relating to, the same sporting event —
- (a) if the first contingency is not decided in the backer's favour, the bet is lost; and
 - (b) where the bet covers 2 contingencies and either of those contingencies is decided in the backer's favour and the other results in a tie, the backer shall receive half the amount receivable had the bet been a winning bet; and
 - (c) where the bet covers 2 contingencies and both are tied, the backer shall receive one fourth of the amount receivable had the bet been a winning bet; and
 - (d) where the bet covers 2 or more contingencies and one contingency is decided in the backer's favour, if the event is subsequently abandoned or if by reason of circumstances not covered by that bet any bet as to any of the other contingencies is not capable of being decided, the backer shall be paid at odds to be determined by the stewards acting at the race meeting where the bet was laid; and
 - (e) where the bet covers 3 or more contingencies and one or more results in a tie, bets shall be determined by the stewards acting at the meeting where the bet was laid; and
 - (f) where the bet covers a contingency and by reason of circumstances not covered by the bet it is not capable of being decided, all bets are to be refunded.

[Rule 6 inserted in Gazette 10 Jul 1992 p. 3294.]

7. Where a sporting event is abandoned, all bets are to be refunded except those laid in respect of contingencies that have been decided totally or in part.

[Rule 7 inserted in Gazette 10 Jul 1992 p. 3295.]

8. Where a sporting event is postponed to a later date, all bets on the event or contingent on the event shall stand.

[Rule 8 inserted in Gazette 10 Jul 1992 p. 3295.]

9. All bets in relation to sporting contingencies shall be “play or pay”, unless the parties mutually agree to the contrary.

[Rule 9 inserted in Gazette 10 Jul 1992 p. 3295; amended in Gazette 30 Jan 2004 p. 408-11.]

Scale of Deduction Table

1. The following Table is the Table referred to in rule 4A and is to be used to determine the rate % of deduction in situations where it is not possible for the stewards to declare a deduction in accordance with rule 4A(3). In that case the stewards may declare a deduction for the purposes of rule 4A(2)(b) in accordance with this Scale of Deduction Table. Calculations can be made in respect of win, place, each-way, concession and doubles wagers. Rate % of deduction (cent in \$) from the dividend payable in respect of the wager. (Note: For the purpose of this Table, the win component of an each-way wager is to be taken as win wager and the place component a place wager.)
2. Generally, the deduction is applied to the face value of a bet made prior to the time it became known that a runner was a late scratched runner.
3. In relation to concession bets, the deduction is applied only —
 - (a) in respect of a runner that comes first; and
 - (b) to the amount of winnings payable.
4. With regard to all successful win, place, each-way, concession and multiple doubles wagers, investors are to be paid the dividend payable in respect of the wager less the number of cents in the dollar deduction applicable on the scale of deductions in the Scale of Deduction Table for the dividends of the runner at the time of its withdrawal.
5. Where 2 or more withdrawals occur simultaneously during wagering, successful wagers made prior to the time of withdrawal are to be paid the dividend payable in respect of the wager, less a deduction determined by adding together the rates of deduction applicable to each of the runners withdrawn.
6. Where withdrawals occur at different times during wagering on a race, successful wagers placed prior to the last withdrawal are to be paid the dividend payable in respect of the wager, less deductions determined as follows —
 - (a) for wagers placed prior to the first withdrawal, the rate of deduction is to be determined by adding together the rates of deduction applicable to the dividends of all withdrawn runners;
 - (b) for wagers placed after the time of the first withdrawal — and prior to the time of the second withdrawal — the rate of deduction is to be determined by the deduction applicable on the scale of

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deductions in the Scale of Deduction Table to the dividends of the second withdrawal.

7. Where the runner ordered or permitted to be withdrawn, or declared a non-starter, is shorter than the range of dividends set out in the Scale of Deduction Table, the stewards may —
- (a) if there is sufficient time, declare all wagers made on the remaining runners to be void and order that wagering on the race be re-opened; or
 - (b) if there is insufficient time to re-open wagering, declare a deduction assessed from the Scale of Deduction Table.

Dividend of withdrawn runner (for bet of \$1)	Win doubles treble deduction	Place deduction where 8 or more runners	Place deduction where less than 8 runners	Concession deduction
	Cents	Cents	Cents	Cents
1.05	80	30	44	70
1.06	80	30	44	70
1.07	80	30	44	70
1.08	80	30	44	70
1.09	80	30	44	70
1.10	80	30	44	70
1.12	80	30	44	70
1.14	80	30	44	70
1.16	80	30	44	70
1.18	79	30	44	70
1.20	78	30	44	70
1.22	77	30	44	70
1.24	75	29	43	67
1.26	74	29	43	67
1.28	73	29	43	67
1.30	72	29	42	67
1.35	69	29	42	64
1.40	67	28	41	62

Dividend of withdrawn runner (for bet of \$1)	Win doubles treble deduction	Place deduction where 8 or more runners	Place deduction where less than 8 runners	Concession deduction
	Cents	Cents	Cents	Cents
1.45	64	28	41	59
1.50	62	28	40	57
1.55	60	27	39	55
1.60	58	27	39	53
1.65	57	27	38	53
1.70	55	27	38	51
1.75	53	26	37	49
1.80	52	26	37	48
1.85	51	26	36	47
1.90	49	25	36	45
1.95	48	25	35	44
2.00	47	25	35	43
2.05	46	25	35	42
2.10	45	24	34	41
2.15	43	24	34	40
2.20	42	24	33	39
2.25	42	24	33	39
2.30	41	24	33	39
2.35	40	23	32	38
2.40	39	23	32	37
2.45	38	23	32	36
2.50	37	23	31	35
2.60	36	22	30	34
2.70	35	22	30	33
2.80	33	21	29	31
2.90	32	21	29	30
3.00	31	21	28	29

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Dividend of withdrawn runner (for bet of \$1)	Win doubles treble deduction	Place deduction where 8 or more runners	Place deduction where less than 8 runners	Concession deduction
	Cents	Cents	Cents	Cents
3.10	30	20	27	28
3.20	29	20	27	27
3.30	28	20	26	26
3.40	27	19	26	25
3.50	27	19	25	25
3.60	26	19	25	24
3.70	25	19	25	24
3.80	25	18	24	24
3.90	24	18	24	23
4.00	23	18	23	22
4.20	22	17	23	21
4.40	21	17	22	20
4.60	20	16	21	19
4.80	19	16	21	18
5.00	19	16	20	18
5.50	17	15	19	17
6.00	16	14	18	16
6.50	14	13	16	14
7.00	13	12	16	13
7.50	12	12	15	12
8.00	12	11	14	12
8.50	11	11	13	11
9.00	10	10	13	10
9.50	10	10	12	10
10.00	9	10	12	9
11.00	8	9	11	8
12.00	8	8	10	8

Dividend of withdrawn runner (for bet of \$1)	Win doubles treble deduction	Place deduction where 8 or more runners	Place deduction where less than 8 runners	Concession deduction
	Cents	Cents	Cents	Cents
13.00	7	8	9	7
14.00	7	7	9	7
15.00	6	7	8	6
16.00	6	7	8	6
17.00	5	6	7	5
18.00	5	6	7	5
19.00	5	6	7	5
20.00	5	5	6	5
21.00	4	5	6	4
26.00	3	4	5	3
31.00	3	3	4	3
41.00	2	3	3	2
51.00	2	2	2	2

[Scale of Deduction Table amended in Gazette 4 Jan 2013 p. 14-15.]

Schedule 1 — Forms

[r. 77]

[Heading inserted in Gazette 30 Jan 2004 p. 411.]

Form 1

Betting Control Act 1954

[s. 28A]

WARRANT

I, [insert name of Justice of the Peace granting the warrant], of
....., being a JUSTICE OF THE PEACE and
being satisfied upon application by [insert name of applicant] that there is
reason to suspect that unlawful betting within the meaning of section 28A of the
Betting Control Act 1954 is or is about to be carried on at (1).....

.....
.....

GRANT to (2)

THIS WARRANT empowering that person to enter those premises with such
other persons as may be necessary to assist using such force as may be
necessary and there to do any of the things referred to in section 28A(2) of that
Act, and this warrant continues to have effect until the purposes for which it
was granted is satisfied.

Granted on
at

.....
Signature of Justice of the
Peace granting the warrant.

- (1) Insert particulars of place.
- (2) Insert the name and designation of the authorised officer or member of
the Police Force.

*[Schedule 1 inserted in Gazette 30 Jan 2004 p. 411; amended in
Gazette 14 Jun 2013 p. 2243.]*

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Notes

- ¹ This is a compilation of the *Betting Control Regulations 1978* and includes the amendments made by the other written laws referred to in the following table^{1a}. The table also contains information about any reprint.

Compilation table

Citation	Gazettal	Commencement
<i>Betting Control Regulations 1978</i>	22 Jun 1978 p. 1991-2014	22 Jun 1978
<i>Betting Control Amendment Regulations 1983</i>	12 Aug 1983 p. 2918	12 Aug 1983
<i>Betting Control Amendment Regulations 1988</i>	4 Mar 1988 p. 667-8	4 Mar 1988 (see r. 2)
<i>Betting Control Amendment Regulations (No. 2) 1988</i>	24 Jun 1988 p. 2003-5	24 Jun 1988
<i>Betting Control (Amendment) Regulations 1989</i>	14 Jul 1989 p. 2133	14 Jul 1989
<i>Betting Control Amendment Regulations 1990</i>	14 Sep 1990 p. 4863-4	14 Sep 1990
<i>Betting Control Amendment Regulations 1991</i>	14 Feb 1992 p. 857-62	14 Feb 1992
<i>Betting Control Amendment Regulations 1992</i>	10 Jul 1992 p. 3286-95	10 Jul 1992
<i>Betting Control Amendment Regulations (No. 2) 1992</i>	31 Jul 1992 p. 3796	31 Jul 1992
Reprint of the <i>Betting Control Regulations 1978</i> as at 20 Aug 1992 (includes amendments listed above)		
<i>Betting Control Amendment Regulations 1993</i>	31 Aug 1993 p. 4677 (correction 10 Sep 1993 p. 4975)	31 Aug 1993
<i>Betting Control Amendment Regulations (No. 2) 1993</i>	24 Dec 1993 p. 6839-40	24 Dec 1993
<i>Betting Control Amendment Regulations 1994</i>	2 Dec 1994 p. 6383	2 Dec 1994
<i>Betting Control Amendment Regulations 1996</i>	25 Jun 1996 p. 2974-8	28 Jun 1996 (see r. 2 and <i>Gazette</i> 25 Jun 1996 p. 2901)

Betting Control Regulations 1978

Citation	Gazettal	Commencement
<i>Betting Control Amendment Regulations (No. 2) 1996</i>	22 Oct 1996 p. 5619	22 Oct 1996
<i>Betting Control Amendment Regulations 1997</i>	4 Mar 1997 p. 1395	4 Mar 1997
<i>Betting Control Amendment Regulations (No. 2) 1997</i>	4 Mar 1997 p. 1396 (as amended 24 Jun 1997 p. 3014)	1 Aug 1997 (see r. 2)
<i>Betting Control Amendment Regulations (No. 3) 1997</i>	24 Jun 1997 p. 3014	24 Jun 1997
Reprint of the <i>Betting Control Regulations 1978</i> as at 30 Sep 1997 (includes amendments listed above)		
<i>Betting Control Amendment Regulations 1998</i>	13 Mar 1998 p. 1394	13 Mar 1998
<i>Betting Control Amendment Regulations (No. 3) 1998</i>	10 Jul 1998 p. 3647	1 Aug 1998 (see r. 2)
<i>Betting Control Amendment Regulations (No. 2) 1998</i>	21 Jul 1998 p. 3850-60	1 Aug 1998 (see r. 2 and <i>Gazette</i> 21 Jul 1998 p. 3825)
<i>Betting Control Amendment Regulations (No. 3) 1999</i>	26 Nov 1999 p. 5908-10	26 Nov 1999
<i>Betting Control Amendment Regulations 2000</i>	13 Oct 2000 p. 5726-7	13 Oct 2000
Reprint of the <i>Betting Control Regulations 1978</i> as at 6 Apr 2001 (includes amendments listed above)		
<i>Betting Control Amendment Regulations 2001</i>	11 Sep 2001 p. 5001	11 Sep 2001
<i>Betting Control Amendment Regulations (No. 2) 2001</i>	2 Oct 2001 p. 5454-5	2 Oct 2001
<i>Betting Control Amendment Regulations (No. 3) 2001</i>	18 Jan 2002 p. 284	21 Jan 2002 (see r. 2)
<i>Betting Control Amendment Regulations 2002</i>	20 Sep 2002 p. 4697-704	21 Sep 2002 (see r. 2 and <i>Gazette</i> 20 Sep 2002 p. 4693)
<i>Betting Control Amendment Regulations (No. 2) 2002</i>	17 Dec 2002 p. 5923-4	17 Dec 2002
<i>Betting Control Amendment Regulations 2003</i>	25 Mar 2003 p. 921-2	1 Apr 2003 (see r. 2)
<i>Betting Control Amendment Regulations (No. 2) 2003</i>	20 Jun 2003 p. 2250-1	1 Jul 2003 (see r. 2)

Citation	Gazettal	Commencement
<i>Betting Control Amendment Regulations (No. 3) 2003</i>	26 Sep 2003 p. 4225-6	1 Jan 2004 (see r. 2)
<i>Betting Control Amendment Regulations (No. 4) 2003</i>	11 Nov 2003 p. 4673-4	11 Nov 2003
<i>Betting Control Amendment Regulations 2004</i>	30 Jan 2004 p. 403-12	30 Jan 2004 (see r. 2)
<i>Betting Control Amendment Regulations (No. 2) 2004</i>	1 Jul 2004 p. 2625-6	1 Jul 2004
<i>Betting Control Amendment Regulations (No. 3) 2004</i>	9 Jul 2004 p. 2780-1	1 Jan 2005 (see r. 2)
Reprint 4: The Betting Control Regulations 1978 as at 6 May 2005 (includes amendments listed above)		
<i>Betting Control Amendment Regulations (No. 2) 2005</i>	14 Oct 2005 p. 4558-9	1 Jan 2006 (see r. 2)
<i>Betting Control Amendment Regulations (No. 2) 2006</i>	28 Apr 2006 p. 1659	28 Apr 2006
<i>Betting Control Amendment Regulations 2006</i>	21 Jul 2006 p. 2669-89	21 Jul 2006
<i>Betting Control Amendment Regulations (No. 3) 2006</i>	10 Oct 2006 p. 4391-2	10 Oct 2006
<i>Betting Control Amendment Regulations (No. 4) 2006</i>	14 Nov 2006 p. 4729-30	1 Jan 2007 (see r. 2)
<i>Betting Control Amendment Regulations (No. 2) 2007</i>	22 Jun 2007 p. 2863-5	r. 1 and 2: 22 Jun 2007 (see r. 2(a)); Regulations other than r. 1 and 2: 9 Jul 2007 (see r. 2(b) and <i>Gazette</i> 22 Jun 2007 p. 2837)
Reprint 5: The Betting Control Regulations 1978 as at 24 Aug 2007 (includes amendments listed above)		
<i>Betting Control Amendment Regulations (No. 3) 2007</i>	18 Sep 2007 p. 4716-18	r. 1 and 2: 18 Sep 2007 (see r. 2(a)); Regulations other than r. 1 and 2: 19 Sep 2007 (see r. 2(b))
<i>Betting Control Amendment Regulations (No. 4) 2007</i>	9 Oct 2007 p. 5348-50	r. 1 and 2: 9 Oct 2007 (see r. 2(a)); Regulations other than r. 1 and 2: 1 Jan 2008 (see r. 2(b))

Citation	Gazettal	Commencement
<i>Betting Control Amendment Regulations 2008</i>	28 Oct 2008 p. 4732-3	r. 1 and 2: 28 Oct 2008 (see r. 2(a)); Regulations other than r. 1 and 2: 1 Jan 2009 (see r. 2(b))
<i>Betting Control Amendment Regulations (No. 3) 2009</i>	25 Sep 2009 p. 3751-2	r. 1 and 2: 25 Sep 2009 (see r. 2(a)); Regulations other than r. 1 and 2: 26 Sep 2009 (see r. 2(b))
<i>Betting Control Amendment Regulations (No. 4) 2009</i>	30 Oct 2009 p. 4312-13	r. 1 and 2: 30 Oct 2009 (see r. 2(a)); Regulations other than r. 1 and 2: 1 Jan 2010 (see r. 2(b))
<i>Betting Control Amendment Regulations (No. 5) 2009</i>	8 Jan 2010 p. 19-27	r. 1 and 2: 8 Jan 2010 (see r. 2(a)); Regulations other than r. 1 and 2: 11 Jan 2010 (see r. 2(b) and <i>Gazette</i> 8 Jan 2010 p. 9-10)
Reprint 6: The Betting Control Regulations 1978 as at 9 Apr 2010 (includes amendments listed above)		
<i>Betting Control Amendment Regulations (No. 3) 2010</i>	19 Nov 2010 p. 5739-40	r. 1 and 2: 19 Nov 2010 (see r. 2(a)); Regulations other than r. 1 and 2: 1 Jan 2011 (see r. 2(b))
<i>Betting Control Amendment Regulations 2011</i>	4 Nov 2011 p. 4635-6	r. 1 and 2: 4 Nov 2011 (see r. 2(a)); Regulations other than r. 1 and 2: 1 Jan 2012 (see r. 2(b))
<i>Betting Control Amendment Regulations (No. 2) 2012</i>	16 Nov 2012 p. 5646-7	r. 1 and 2: 16 Nov 2012 (see r. 2(a)); Regulations other than r. 1 and 2: 1 Jan 2013 (see r. 2(b))
<i>Betting Control Amendment Regulations 2012</i>	4 Jan 2013 p. 11-15	r. 1 and 2: 4 Jan 2013 (see r. 2(a)); Regulations other than r. 1 and 2: 5 Jan 2013 (see r. 2(b))
<i>Betting Control Amendment Regulations 2013</i>	14 Jun 2013 p. 2240-3	r. 1 and 2: 14 Jun 2013 (see r. 2(a)); Regulations other than r. 1 and 2: 15 Jun 2013 (see r. 2(b))
Reprint 7: The Betting Control Regulations 1978 as at 23 Aug 2013 (includes amendments listed above)		

Citation	Gazettal	Commencement
<i>Betting Control Amendment Regulations (No. 3) 2013</i>	8 Nov 2013 p. 4972-3	r. 1 and 2: 8 Nov 2013 (see r. 2(a)); Regulations other than r. 1 and 2: 1 Jan 2014 (see. r. 2(b))
<i>Betting Control Amendment Regulations (No. 2) 2013</i>	29 Nov 2013 p. 5467	r. 1 and 2: 29 Nov 2013 (see r. 2(a)); Regulations other than r. 1 and 2: 30 Nov 2013 (see r. 2(b))
<i>Betting Control Amendment Regulations (No. 2) 2014</i>	14 Nov 2014 p. 4279-80	r. 1 and 2: 14 Nov 2014 (see r. 2(a)); Regulations other than r. 1 and 2: 1 Jan 2015 (see r. 2(b))
<i>Racing, Gaming and Liquor Regulations Amendment (Fees and Charges) Regulations 2015 Pt. 2</i>	6 Nov 2015 p. 4581-8	1 Jan 2016 (see r. 2(b))
<i>Betting Control Amendment Regulations (No. 2) 2016</i>	8 Mar 2016 p. 669	r. 1 and 2: 8 Mar 2016 (see r. 2(a)); Regulations other than r. 1 and 2: 9 Mar 2016 (see r. 2(b))
<i>Betting Control Amendment Regulations 2016</i>	13 May 2016 p. 1427	r. 1 and 2: 13 May 2016 (see r. 2(a)); Regulations other than r. 1 and 2: 14 May 2016 (see r. 2(b))

^{1a} On the date as at which this compilation was prepared, provisions referred to in the following table had not come into operation and were therefore not included in this compilation. For the text of the provisions see the endnotes referred to in the table.

Provisions that have not come into operation

<u>Citation</u>	<u>Gazettal</u>	<u>Commencement</u>
<i><u>Racing, Gaming and Liquor Regulations Amendment (Fees and Charges) Regulations 2016 Pt. 2</u></i> ³	<u>28 Oct 2016</u> <u>p. 4910-16</u>	<u>1 Jan 2017 (see r. 2(b))</u>

² Under the *Alteration of Statutory Designations Order (No. 2) 1996* a reference in any law to the Commissioner of State Taxation is read and construed as a reference to the Commissioner of State Revenue unless the contrary intention appears.

³ On the date as at which this compilation was prepared, the *Racing, Gaming and Liquor Regulations Amendment (Fees and Charges) Regulations 2016* Pt. 2 had not come into operation. It reads as follows:

Part 2 — Betting Control Regulations 1978 amended

3. Regulations amended

This Part amends the *Betting Control Regulations 1978*.

4. Various fees amended

Amend the provisions listed in the Table as set out in the Table.

Table

<u>Provision</u>	<u>Delete</u>	<u>Insert</u>
<u>r. 17(1)(ac)</u>	<u>\$345</u>	<u>\$348</u>
<u>r. 17(1)(a)</u>	<u>\$695</u>	<u>\$702</u>
<u>r. 17(1)(ba)</u>	<u>\$170</u>	<u>\$171</u>
<u>r. 17(1)(bb)</u>	<u>\$91</u>	<u>\$92</u>
<u>r. 17(1)(c)</u>	<u>\$165</u>	<u>\$166</u>
<u>r. 17(1)(f)</u>	<u>\$665</u>	<u>\$672</u>
<u>r. 17(2)</u>	<u>\$108</u>	<u>\$109</u>
<u>r. 17(3)</u>	<u>\$108</u>	<u>\$109</u>
<u>r. 17A(1)(a)(i)</u>	<u>\$389</u>	<u>\$393</u>
<u>r. 17A(1)(a)(ii)</u>	<u>\$793</u>	<u>\$801</u>
<u>r. 17A(1)(a)(iii)</u>	<u>\$1 190</u>	<u>\$1 203</u>